Mortiles
4600 Lincoln Dr. Suite W-1, Baltimore, MD 21227
Primary Phone: 443-575-6680 Secondary Phone: 410-271-9723 Fax: (443) 524-8032

4/2/2026

ORDER FORM (260415696)

CURRENT OWNER SEARCH-24-MONTH COT

Ordered To			
Name :	HAZELWOOD AND ASSOCIATES LLC		
File Number:	260415696	**Date:**	04/09/2026
Order Type :	CURRENT OWNER SEARCH-24-MONTH COT		
Property Information			
Borrower/Owner:	NADIA HOWARD		
Parcel ID:			
Address :	980 W LEE HIGHWAY, WYTHEVILLE, VA 24382 Wytheville 24382		
State:	VIRGINIA	**County :**	WYTHE

* * * * Special Requirements * * * *

Search Type Current Owner Search

Please abstract back to the last insured deed with consideration If that deed is of record less than 24 months from the date of the search please go back to the deed that is of record more than 24 months
EXAMINER NOTE
In addition to the standard name searches names must be searched for federal tax liens federal civil judgments and federal criminal judgments for a period of 20 years
If real estate taxes are included with your report please provide due dates amounts due and whether open or paid and last amount paid and date paid In some jurisdictions could be discounted Complete due dates are required including next due

Requirements

SEARCH MUST GO BACK TO A GOOD ARM'S LENGTH DEED. IF THE CURRENT DEED IS RECORDED WITHIN 24 MONTHS FROM THE CURRENT EFFECTIVE DATE, THEN OBTAIN ONLY A COPY OF THAT PRIOR DEED(S) COVERING 24 MONTHS OF THE PRIOR CHAIN OF TITLE(S) BUT THERE IS NO NEED TO PERFORM AN ACTUAL TITLE SEARCH ON THE PRIOR OWNER(S) OR UPGRADE THE SEARCH. PROVIDE FULL COPIES OF ALL DEEDS. ALSO, PROVIDE COPIES OF ANY OUT SALES FROM THE ORIGINAL VESTING DEED(S).
****

WE REQUIRE PERTINENT PAGES OF ALL OPEN DEED OF TRUSTS AKA MORTGAGES. PERTINENT PAGES INCLUDE: NEED NAME, AMOUNT, ADDRESS, SIGNATURE, NOTARY SIGNATURE PAGE, LEGAL DESCRIPTION, PUD RIDER PAGES (WHERE APPLICABLE) & RECORDING INFORMATION. WE ALSO REQUIRE COMPLETE COPIES OF ALL ASSOCIATED DOCUMENTS SUCH AS ASSIGNMENTS, SUBORDINATIONS, MODIFICATIONS, UCCS, FINANCING STATEMENTS, POAS & REFINANCE AFFIDAVITS (IF ANY).

NOTE: IF AN ASSUMPTION MORTGAGE IS REFERENCED/MENTIONED WITHIN ANY OF THE DEEDS, WE MUST KNOW IF THE ASSUMPTION MORTGAGE IS OPEN OR RELEASED. IF OPEN/UNRELEASED PLEASE ABSTRACT AND PROVIDE A COPY OF THE MORTGAGE AS NORMAL.

IF RELEASED, PLEASE PROVIDE A COPY OF THE RELEASE/SATISFACTION. IF THE RELEASE/SATISFACTION COPY IS NOT AVAILABLE, THEN PLEASE NOTE THAT AND INSTEAD PROVIDE THE CORRESPONDING RELEASE INFORMATION SUCH AS THE REFERENCE TO THE BOOK & PAGE OR INSTRUMENT NUMBER AND RECORDING DATE OF THE RELEASE OR SATISFACTION.

PLEASE SEARCH FOR UNIFORM COMMERCIAL CODE DOCUMENTS. IF YOU LOCATE A UCC, IT IS IMPERATIVE THAT YOU VERIFY IF YOU CAN RUN A SEARCH QUERY USING THE UCC NUMBER ON THE DOCUMENT. YOU SEARCH BY UCC NUMBER (IF AVAILABLE) BECAUSE SOME RELATED DOCUMENTS (MODIFICATIONS, AMENDMENTS, RELEASES, EXTENSIONS ETC.) ARE NOT INDEXED ON THE DEBTOR'S NAME BUT THEY ARE INDEXED BY THE UCC NUMBER.
****

RUN JUDGMENTS/LIENS ON ALL NAMES AND PROVIDE READILY AVAILABLE OPEN JUDGMENTS / LIENS (NOT SATISFIED OR EXPIRED), ALSO REPORT APPLICABLE DIVORCE CASE/DOCKET ON CURRENT OWNER(S). RUN CIRCUIT COURTS WHERE JUDGMENTS AND LIENS MUST BE FILED IN ORDER TO ATTACH TO REAL ESTATE. ALWAYS PROVIDE THE DOCKETS AKA CASE HISTORY WHERE ACTUAL COPIES ARE NOT PROVIDED.

PLEASE PROVIDE COPIES OF ANY & ALL STATE AND FEDERAL TAX LIENS FOUND.

NOTE: IT IS EXTREMELY IMPORTANT THAT YOU PROVIDE A LIST OF NAMES (AND ANY VARIATIONS OF THOSE NAMES) WHO WERE RAN FOR JUDGMENTS AND LIENS.

****

IF ANY OF THE CURRENT OWNER(S) ARE DECEASED OR IF THE PROPERTY'S INTEREST OR TITLE HAS BEEN CONVEYED VIA AN ESTATE OR PERSONAL REPRESENTATIVE DEED, THEN WE REQUIRE PERTINENT PAGES FROM THE ESTATE. SUCH AS THE DOCKET aka CASE HISTORY, LAST WILL & TESTAMENT, LIST OF HEIRS, NOTICES TO CREDITORS, APPOINTMENT OF PERSONAL REPRESENTATIVE, INVENTORY, PROOF OF PAYMENT FOR ESTATE TAXES (IN APPLICABLE STATES), ANY/ALL CLAIMS AGAINST THE ESTATE & ANY OTHER PERTINENT DOCUMENTATION DIRECTLY RELATED TO THE SUBJECT PROPERTY.

IF ESTATE OCCURS FURTHER BACK IN THE CHAIN OF TITLE, THEN PROVIDE THE DOCKET INFORMATION. NO NEED TO PULL ACTUAL ESTATE COPIES ON PRIOR OWNERS, THE DOCKET INFORMATION FROM THE ESTATE WILL SUFFICE.
****

PROVIDE DETAILED PROPERTY TAXES WITH PAID AMOUNT AND THE PAID DATES. IF TAXES ARE STILL DUE, THEN WE NEED THE DUE AMOUNT WITH DUE DATES. REPORT ANY AND ALL DELINQUENCIES AND PAST DUE AMOUNTS. ALSO LIST THE PARCEL ID ON THE PROPERTY.
****

WE REQUIRE A PLAT COPY ON ALL SEARCHES. IF A PLAT IS UNAVAILABLE, PLEASE PROVIDE THE REASON WHY THE PLAT IS NOT READILY AVAILABLE AND PROVIDE WHATEVER ELSE IS AVAILABLE SUCH AS A TAX MAP OR GIS MAP.
****

WE NEED PERTINENT COPIES OF C&R DOCUMENTS (TABLE OF CONTENTS, FIRST 5-10 PAGES AND THE PORTION OF DECLARATIONS WHICH DEALS WITH ASSESSMENTS, FRONT FOOT BENEFIT AND COMMON PROPERTY) , ROW, EASEMENTS, ETAL... THAT ARE FOUND WITHIN THE SCOPE / TIMEFRAME OF THE SEARCH.

Note: WE ONLY REQUIRE THE FIRST 5 PAGES OF THE DECLARATION OF CONDO, NOT MORE THAN THAT.
****

IF THE PROPERTY IS PART OF A PUD (PLANNED URBAN DEVELOPMENT) OR HOA (HOME OWNERS ASSOCIATION), OR CONDOMINIUM, PLEASE PROVIDE THE RELEVANT CONDO, PUD & HOA INFORMATION. ALSO PROVIDE ASSOCIATED DOCUMENTS SUCH AS PERTINENT PAGES OF DECLARATION OR AGREEMENT. PLEASE BE SURE TO MAKE A NOTE THAT NONE WAS FOUND.
****

NOTE: DO NOT PROCEED WITH THE SEARCH WITHOUT FIRST PROVIDING A DETAILED EXPLANATION & TAKING APPROVAL IF THE PROPERTY IS:
a] NOT LOCATED IN THE COUNTY LISTED
b] ZONED COMMERCIAL
c] A MOBILE HOME ON LEASED LAND (MEANING THEY DO NOT OWN THE LAND).
d) IF THE PROVIDED BORROWER IS NOT FOUND ON THE TITLE FOR THE PROVIDED PROPERTY ADDRESS,

Search By :	24-48 Business hours. Please notify us asap if TAT will exceed.

(Include Invoices with Completed Searches, Fax or Email to title@mortiles.com)

Mortiles
4600 Lincoln Dr. Suite W-1, Baltimore, MD 21227
Primary Phone: 443-575-6680 Secondary Phone: 410-271-9723 Fax: (443) 524-8032

ABSTRACTOR CHECKLIST (260415696)

BELOW ARE REQUIRMENTS WHICH ARE OFTEN NOT MET OR NOT CLEARLY CONVEYED. PLEASE TAKE A FEW MOMENTS TO COMPLETE AND RETURN THE FORM WITH YOUR SEARCH RESULTS. KINDLY USE ADDITIONAL INFORMATION/NOTES SECTION TO CONVEY ANY RELEVANT INFORMATION. THANK YOU IN ADVACE FOR YOUR COOPERATION IN PROVIDING THIS INFORMATION.

*PLEASE BE SURE TO INCLUDE ALL PERTINENT PAGES FROM MORTGAGE AS LISTED ON THE REQUEST FORM. INCLUDING THE ADDRESS PAGE AND NOTARY SIGNATURE PAGE.

	SEARCH REQUIRMENTS	Found	None Found	Not Run
1	Is the property subject to/part of a Homeowner's Association? If yes, please provide the name of the HOA. **HOA Name:** _____ **HOA RecordingInfo: Book/Page:** _____ **Rec.Date:** _____	[ ]	[ ]	[ ]
2	Did any of the Deeds reference an Assumption Mortgage? If so, please provide the corresponding release/satisfaction information such as Book/Page, Instrument # and Recording Date. **Book/Page:** _____ **Instrument#:** _____ **Rec.Date:** _____	[ ]	[ ]	[ ]
3	We require a copy of the Plat. If you did not provide a copy of the plat, please provide an explanation as to why it was not provided. **Comments:**	[ ]	[ ]	[ ]
4	Please check the current owners for any possible Estates/Probate filed. Kindly let us know if any Estates were found by checking Found or None Found. **Estate Name:** _____ **Book/Page/EstateNo:** _____ **DOD:** _____ **Is the Estate Still Open or has it been Closed? Yes/No** **Please provide a copy of the Estate docket.**	[ ]	[ ]	[ ]
5	Please provide a list of all names ran for Judgments and Liens below.	[ ]	[ ]	[ ]
6	Are there different Effective Dates aka Good Through Dates for the various departments you searched in the County? If yes, please provide the effective date for each department. **Land Records effective date is** 4/2/2026 **Judgment & Lien index effective date is** 4/2/2026 **Please circle the respective Court: [Circuit, District, Supreme, Municipal, Prothnotary, Other] Effective Date is** _____ .	[ ]	[ ]	[ ]

NOTES/ADDITIONAL INFORMATION FROM ABSTRACTOR:

N
41A-4-1
41A-4-2
41A-4-3
41A-3-66
41A-3-64
41A-3-62
41A-3-61
41A-3-59
41A-3-58
41A-3-57
41A-3-56
41A
980
960
W Lee Hwy
Wythe County
0
25 ft
50 ft
www.interactiveGIS.com
Printed 04/10/2026
Sources: Esri, DigitalGlobe, Earthstar Geographics, CNES/Airbus DS, GeoEye, USDA FSA, USGS, Aerogrid, IGN, IGP, and the GIS User Community

Property Location 980 W LEE HIGHWAY | Map ID 41A/ 4/ / 1/ | Road Frontage RT 11 PAVED | District: 08 Town Of Wyth | State Use SFD - Urban Res
Vision ID 9036 | Account # 9921 | Bldg # 1 | Sec # 1 of 1 | Card # 1 of 1 | Print Date 9/23/2024 3:26:16 PM

CURRENT OWNER

HOWARD NADIA
LYNN HOWARD
980 W LEE HWY

WYTHEVILLE VA 24382

TOPO	UTILITIES	STRT / ROAD	LOCATION
0 Public Water			
0 Public Sewer			

SUPPLEMENTAL DATA

Tax Map #	041A-004-0000-0001	User Field	
Area Code	02:Town Of Wytheville	Appeal Ch	N
Ag Dist Co	00:None	Appeal No	N:No
User Field			
User Field			
User Field			
GIS Id	041A-004-0000-0001	Associated P	

CURRENT ASSESSMENT

Type Description	Code	MARKET VALUE	USE VALUE
Building	100	78,700	78,700
Land	100	28,100	28,100
Total		106,800	106,800

10131

WYTHE COUNTY, VA

VISION

RECORD OF OWNERSHIP

	BK-VOL/PAGE		SALE DATE	Q/U	V/I	SALE PRICE	VC
HOWARD NADIA	240001153		05-23-2024	Q	I	220,000	01
5S PROPERTIES LLC	230001927		08-03-2023	U	I	45,650	00
TOLBERT KRISTAL JOY	190000214	0	10-24-2019	U	I	0	00
WYATT CAROLYN FAULKNER	010001388	0	04-17-2001	U	I	49,000	00
GRUBBS JIM J & VONDA L	970003953	0	10-24-1997	U	I	42,500	00

PREVIOUS ASSESSMENTS (HISTORY)

Year	Code	Total Assesse	Year	Code	Assessed V	Year	Code	Total Assesse
2024	100	78,700	2022	100	78,200	2022	100	78,200
	100	28,100		100	28,100		100	28,100
	Total	106,800		Total	106,300		Total	106,300

OTHER ASSESSMENTS

Code	Description	Number	Amount	Interest

This signature acknowledges a visit by a Data Collector or Assessor

ASSESSING NEIGHBORHOOD

Prc Assng Dist	Nbhd Name	Street Index Name	Property Use	Class
0001			10	01

PROPERTY NOTES

TYPE	YEAR	NOTES
CMNT	2021	2016: ADDED STORAGE/METAL // JC
CMNT	2023	12/17/19-Carolyn Faulkner Wyatt DOD 10/24/19, LH rec. as WF#190000214-ktv 3/4/24 Substitute Trustee's Deed rec 8/3/23 inst #230001927 HSA

APPRAISED VALUE SUMMARY

Appraised Bldg. Value (Card)	78,700
Appraised Xf (B) Value (Bldg)	0
Appraised Ob (B) Value (Bldg)	0
Appraised Land Value (Bldg)	28,100
Special Land Value	0
Total Appraised Parcel Value	106,800
Value Source	C
Total Appraised Parcel Value	106,800

INCLUDES TAXABLE PARCELS

LAND LINE VALUATION SECTION

B	Use	Description	Front	Depth	Zoni	LA	Land Type	Units		Unit Pri	Size Adj	Site I	Cond.	Nbhd.	Nbhd.	Notes	Location Adjustmen		Adj Unit P	Appraised
1	100	SFD - Urban Res	100	245				100	FF	225.00	1.00000	0	1.00		1.000	HOME SITE; RES DEPTH A		1.0000	215.66	21,600
1	100	SFD - Urban Res	0	0				0	SF	6,500.0	1.00000	0	1.00		1.000	SWL Pub Wtr/Pub Swr		0.0000	6,500	6,500

Total Card Land Units 0.000 FF | Parcel Total Land Area 0.000 | Total Land Value 28,100

Property Location	980 W LEE HIGHWAY	Map ID	41A/ 4/ / 1/	Road Frontage	RT 11 PAVED	District: 08 Town Of Wyth	State Use SFD - Urban Res
Vision ID 9036	Account # 9921			Bldg # 1	Sec # 1 of 1	Card # 1 of 1	Print Date 9/23/2024 3:26:17 PM

CONSTRUCTION DETAIL

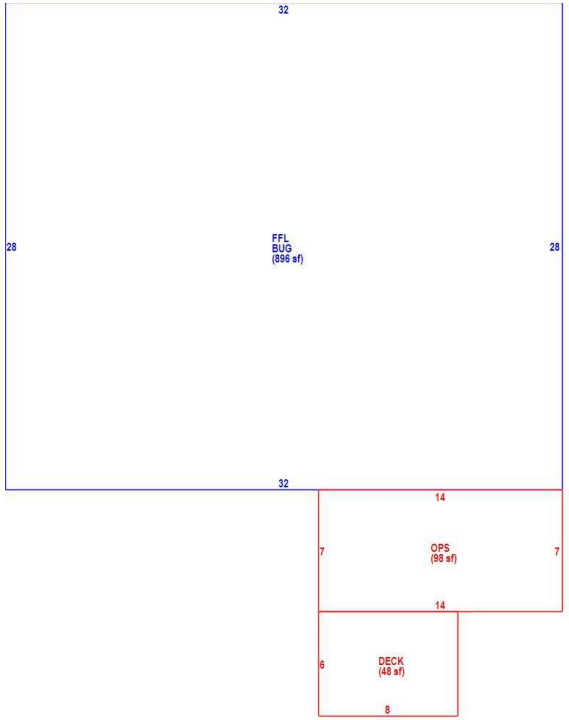
Element	Cd	Description
Model	01	Residential
Style	06	Conventional
Grade	D	Grade D
Stories	1	
# Units		
Roof Type	01	Gable
Roof Cover	05	Comp Shingle
Exterior Wall 1	25	Vinyl
Exterior Wall 2		
Frame Type	01	Frame
Heat System	03	Forced Air
Heat Fuel	02	Oil
AC Type	01	None
Interior Wall 1	05	Drywall
Interior Wall 2		
Interior Wall 3		
Interior Floor 1	12	Hardwood
Interior Floor 2	14	Carpet
Interior Floor 3		
Interior Floor 4		
Total Room(s)	4	
Bedroom(s)	2	
Full Bath(s)	1	
Half Bath(s)	0	
Extra Fixture(s)	0	
Extra Kitchen(s)	0	
Fireplace(s)		
Gas FPL(s)		
Extra Opening(		
Chimney(s)		
Foundation	06	Conc/Block
Total Area	896	
Basement		

CONSTRUCTION DETAIL (CONTINUED)

Element	Cd	Description
Total Area	896	
Basement		
Fin Bsmt Area		

COST / MARKET VALUATION

Building Value New	97,511
Year Built	1992
Effective Year Built	2005
Condition Code	A
Remodel Rating	
Year Remodeled	
Depreciation %	15
Functional Obsol	0
External Obsol	5
Trend Factor	1.000
Special Condition	
Condition %	
Percent Good	85
RCNLD	78,700
Dep % Ovr	
Dep Ovr Comment	
Misc Imp Ovr	
Misc Imp Ovr Comment	
Cost to Cure Ovr	
Cost to Cure Ovr Comment	



OB - OUTBUILDING & YARD ITEMS(L) / XF - BUILDING EXTRA FEATURES(B)

Code	Description	L/B	Units	Unit Price	Year	Cond. Cd	Percent	Grade	Grade Adj.	Appr. Value
STOR	Storage	L	1	0.00	1992	ND	1	OR	1.00	0

BUILDING SUB-AREA SUMMARY SECTION

Code	Description	Living Area	Floor Area	Eff Area	Unit Cost	Undeprec Value
BUG	Basement - S/L (4th)	0	896	0	13.60	12,186
DECK	Deck	0	48	0	12.80	614
FFL	First Floor	896	896	896	92.97	83,299
OPS	Open Porch	0	98	0	14.40	1,411
	Ttl Gross Liv / Lease Area	896	1,938	896		97,510

Wythe County

Real Estate Tax Statement

Parcel: 041A-004-0000-0001
Location: 980 W LEE HIGHWAY

Owner:
HOWARD NADIA
LYNN HOWARD
980 W LEE HWY
WYTHEVILLE VA 24382

Status:

Square	0
Land Valuation:	28,100
Building Valuation:	78,700
Exemptions:	0
Taxable Valuation:	106,800
Interest Per Diem:	0.00

Legal Description:
W LEE HIGHWAY LOT 1 HILTON PROP

Deed Date: 05/23/2024 **Book/Page:** 2400/01153 **Interest Date:** 04/10/2026

Year	Type	Bill
2025	RE-R	25108553

Inst	Charge	Billed	Principal Due	Interest Due	Total Due
1	RE TAX	544.68	0.00	0.00	0.00
		544.68	0.00	0.00	0.00
Year Totals		**544.68**	**0.00**	**0.00**	**0.00**

Year	Type	Bill
2024	RE-R	24107221

Inst	Charge	Billed	Principal Due	Interest Due	Total Due
1	RE TAX	544.68	0.00	0.00	0.00
		544.68	0.00	0.00	0.00
Year Totals		**544.68**	**0.00**	**0.00**	**0.00**

Year	Type	Bill
2023	RE-R	23117601

Inst	Charge	Billed	Principal Due	Interest Due	Total Due
1	RE TAX	542.13	0.00	0.00	0.00
	RE PENALTY	12.89	0.00	0.00	0.00
		555.02	0.00	0.00	0.00
Year Totals		**555.02**	**0.00**	**0.00**	**0.00**

Year	Type	Bill
2022	RE-R	22117612

Inst	Charge	Billed	Principal Due	Interest Due	Total Due
1	RE TAX	542.13	0.00	0.00	0.00
		542.13	0.00	0.00	0.00
Year Totals		**542.13**	**0.00**	**0.00**	**0.00**

Year	Type	Bill
2021	RE-R	21117534

Inst	Charge	Billed	Principal Due	Interest Due	Total Due
1	RE TAX	408.78	0.00	0.00	0.00
		408.78	0.00	0.00	0.00
Year Totals		**408.78**	**0.00**	**0.00**	**0.00**

Wythe County

Real Estate Tax Statement

Year	Type	Bill
2020	RE-R	20117518

Inst	Charge	Billed	Principal Due	Interest Due	Total Due
1	RE TAX	408.78	0.00	0.00	0.00
		408.78	0.00	0.00	0.00
Year Totals		**408.78**	**0.00**	**0.00**	**0.00**

Year	Type	Bill
2019	RE-R	19119517

Inst	Charge	Billed	Principal Due	Interest Due	Total Due
1	RE TAX	208.78	0.00	0.00	0.00
		208.78	0.00	0.00	0.00
Year Totals		**208.78**	**0.00**	**0.00**	**0.00**

Year	Type	Bill
2019	RE-S	19300112

Inst	Charge	Billed	Principal Due	Interest Due	Total Due
1	RE TAX	200.00	0.00	0.00	0.00
	RE PENALTY	10.00	0.00	0.00	0.00
		210.00	0.00	0.00	0.00
Year Totals		**210.00**	**0.00**	**0.00**	**0.00**

Year	Type	Bill
2018	RE-R	119552

Inst	Charge	Billed	Principal Due	Interest Due	Total Due
1	RE TAX	208.78	0.00	0.00	0.00
		208.78	0.00	0.00	0.00
Year Totals		**208.78**	**0.00**	**0.00**	**0.00**

Year	Type	Bill
2017	RE-R	119488

Inst	Charge	Billed	Principal Due	Interest Due	Total Due
1	RE TAX	170.93	0.00	0.00	0.00
		170.93	0.00	0.00	0.00
Year Totals		**170.93**	**0.00**	**0.00**	**0.00**

Year	Type	Bill
2016	RE-R	9921

Inst	Charge	Billed	Principal Due	Interest Due	Total Due
1	RE TAX	169.95	0.00	0.00	0.00
		169.95	0.00	0.00	0.00
Year Totals		**169.95**	**0.00**	**0.00**	**0.00**

Grand Totals	**3,972.51**	**0.00**	**0.00**	**0.00**

** End of Report - Generated by Lori Guynn **

CLR240001153

THIS DOCUMENT PREPARED BY:
William R. Kilgore, Esq., Virginia State Bar No. 93605
150 W. Main St., Suite F,
Wytheville, VA 24382

Tax Map No.: 041A-004-0000-0001
Title Insurance: Fidelity National Title Ins. Co.
Consideration: $220,000.00
Tax Assessed Value: $106,300.00

NO TITLE EXAMINATION WAS CONDUCTED BY WILLIAM R. KILGORE, ESQ.

GENERAL WARRANTY DEED

THIS DEED is made and entered into this 23rd day of May, 2024, by and between 5S PROPERTY LLC, a Virginia limited liability company, erroneously referred to as 5S PROPERTIES LLC, as Grantor; and NADIA HOWARD and LYNN HOWARD, as Grantees.

WITNESSETH:

That for and in consideration of the sum of $10, cash in hand paid, and other good and valuable consideration, the receipt of which is hereby acknowledged, the Grantor does hereby grant, bargain, sell and convey, with General Warranty and English Covenants of Title, unto the Grantees, as joint tenants with the right of survivorship as at common law, all that certain tract or parcel of real estate, situate in the Town of Wytheville, Wythe County, Virginia, more particularly bounded and described as follows, to-wit:

"Beginning at a point in the center line of Highway No. 11, opposite the corner of Terry Brothers, and running thence with the center line of said Highway, S 75° 10' W 100 feet to a stake; thence, N 16° 15' W 300 feet to a stake; thence N 75° 10' E 100 feet to a stake in Terry Brothers' line; thence, running with their line, S 16° 15' E 300 feet to the beginning, containing 0.68 acres, more or less, less that portion conveyed to the Commonwealth of Virginia by deed dated July 20, 1952, and of record in Deed Book 142, page 227."

Said plat recorded in Plat Book 2, page 10.

Return Deed to New Century Title at 140 S. 4th St., Wytheville, VA 24382

Examined 5/23, 2024
NADIA Howard
780 W. Lee Hwy W'ville VA 24382
Tests Brenda Quisenberry Dep. Clerk

BEING the same real property conveyed by deed dated July 26, 2023, from EQUITY TRUSTEES, LLC to 5S PROPERTIES LLC, and of record in the Wythe County Clerk's Office as Instrument Number 230001927.

This conveyance is made subject to all encumbrances, easements, reservations, conditions, and restrictions of record insofar as they may lawfully affect the Property.

Real estate taxes for the year 2024 on the property herein conveyed will be prorated between Grantor and Grantees as of the date of delivery of this deed.

Possession is delivered to the Grantees with delivery of this deed.

WITNESS the following signature and seal:

5S PROPERTY LLC

_____(SEAL)
By: FRANKIE SCOTT, member

COMMONWEALTH OF VIRGINIA
COUNTY OF WYTHE, to wit:

The foregoing instrument was acknowledged before me by FRANKIE SCOTT, member of 5S PROPERTY LLC, a Virginia limited liability company, on behalf of the limited liability company, this 23rd day of May, 2024.

Katlinn Paige Fletcher
Notary Public

My commission expires: 02/29/2026

Notary Registration No.: 8025346

KATLINN PAIGE FLETCHER
NOTARY PUBLIC
REG. #8025346
MY COMMISSION EXPIRES
02-29-2026
COMMONWEALTH OF VIRGINIA

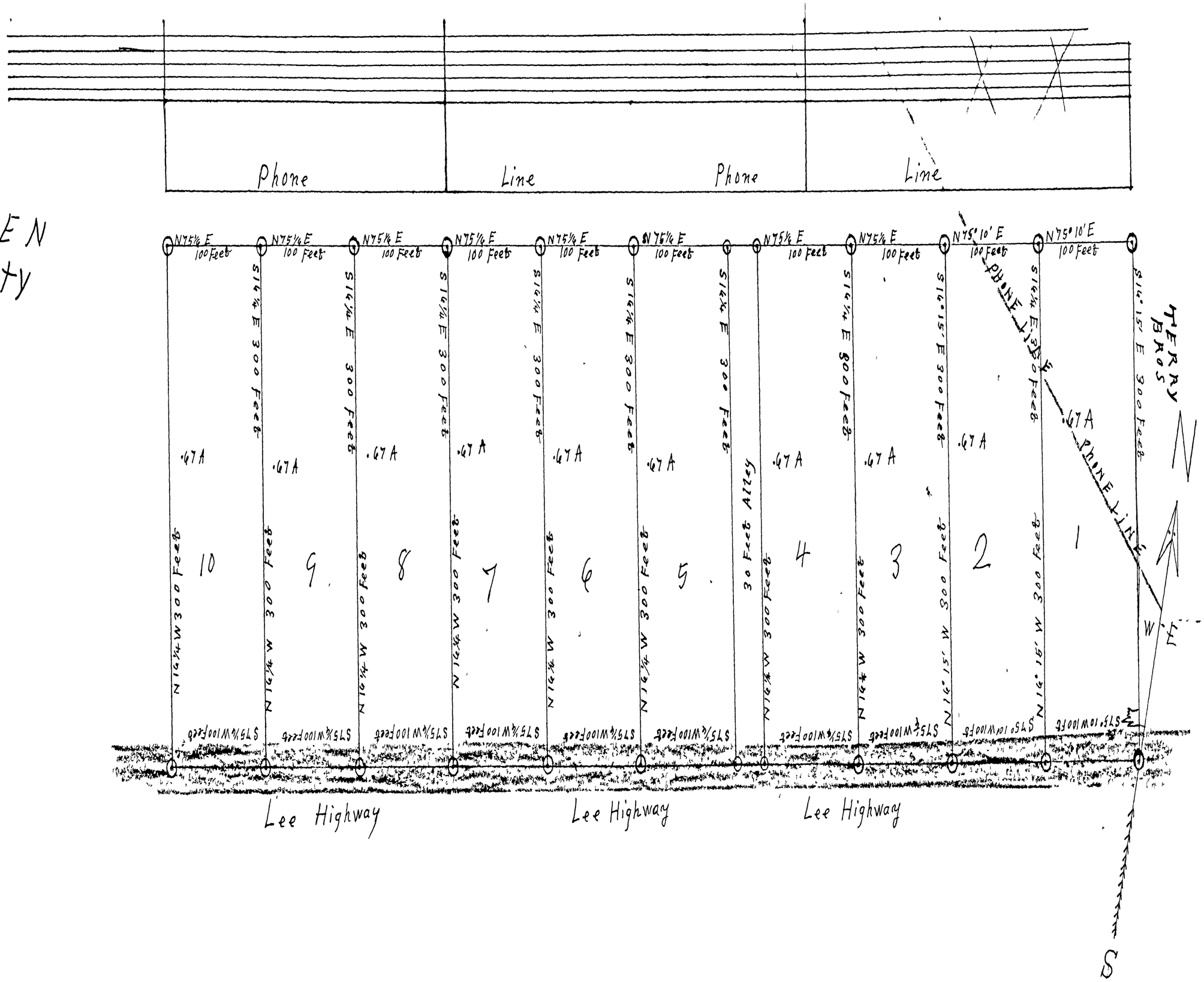
INSTRUMENT 240001153
RECORDED IN THE CLERK'S OFFICE OF
WYTHE CIRCUIT COURT ON
MAY 23, 2024 AT 01:28 PM
$220.00 GRANTOR TAX WAS PAID AS
REQUIRED BY SEC 58.1-802 OF THE VA. CODE
STATE: $110.00 LOCAL: $110.00
JEREMIAH E. MUSSER, CLERK
RECORDED BY: BGQ

Brenda Quesenberry

D. H. HILTEN PROPERTY

Surveyed and maped by B. B. Roberts

Scale $1\frac{5}{10}$ in = 100 Feet


Phone
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N75½ E 100 Feet
N75° 10' E 100 Feet
S16¼ E 300 Feet
S16° 15' E 300 Feet
S16¼ E 300 Feet
S16° 15' E 300 Feet
S16¼ E 300 Feet
S16¼ E 300 Feet
S16¼

CLR230001927

Prepared under the supervision of:
Robert R Michael, VSB #74148
8100 THREE CHOPT ROAD, SUITE 240
RICHMOND, VA 23229

BWW File No. VA-354311

Tax ID: 041A-004-0000-0001

RETURN TO:
BWW Law Group, LLC
6003 Executive Blvd
Suite 101
Rockville, MD 20852

The existence of title insurance is unknown to the preparer.

SUBSTITUTE TRUSTEE'S DEED

THIS SUBSTITUTE TRUSTEE'S DEED ("Deed"), dated July 26, 2023, by and between EQUITY TRUSTEES, LLC, a Virginia Limited Liability Company, Substitute Trustees under a Deed of Trust executed by Carolyn Faulkner WYATT securing the below described property ("Grantor") and hereinafter referred to as party of the first part, and 5S Properties LLC, PO Box 264, Wytheville, VA 24382 ("Grantee").

WITNESSETH:

WHEREAS, by a certain Deed of Trust dated April 24, 2006 and recorded at Instrument No. 060001758 in the land records of the Wythe County Circuit Court Clerk's Office (the "Deed of Trust"), Carolyn Faulkner WYATT conveyed the below described property unto Karen J. GLASCOCK and John MYERS, in trust, to secure a promissory note originally payable to BRANCH BANKING AND TRUST COMPANY OF VIRGINIA (the "Note").

WHEREAS, pursuant to Virginia law and the terms of the Deed of Trust, the holder of the Note was authorized and empowered to appoint a substitute trustee in the place and stead of any of the trustees originally named in the Deed of Trust or subsequently appointed; and

WHEREAS, by that certain appointment of substitute trustee instrument duly executed, acknowledged and recorded in the aforesaid Circuit Court Clerk's Office, the holder of the Note appointed Equity Trustees, LLC to act as substitute trustee under the Deed of Trust in the place and stead of the original trustee(s) and any trustee(s) who were subsequently appointed; and

WHEREAS, by the terms of said Deed of Trust, in the event of default and upon the request of the holder of the Note, the Substitute Trustee is empowered to declare all debts and obligations secured by the Deed of Trust at once due and payable and to proceed to sell the property at auction upon such terms and conditions as the Substitute Trustee may deem best;

Consideration:	$45,650.00
Assessment:	$106,300.00
State & Local:	$265.75 and $88.58
Grantor's Tax:	$106.50

Examined August 3, 2023
5S Properties LLC
PO Box 264 Wytheville VA 24382
Tests: Teresa Kirklan Dep. Clerk
Ret: Dudley Law Group

WHEREAS, due to a default under the terms of the Deed of Trust, the Substitute Trustee, upon request from the Note holder or the Deed of Trust beneficiary, did offer the below described property for sale at a public auction to the highest bidder on July 10, 2023 in the front of the Circuit Court building for Wythe County, 225 S. Fourth St., Wytheville, VA or any such temporary alternative Circuit Court location designated by the Judges of the Circuit Court, after publishing the time, date, place and terms of the sale in a newspaper with general circulation in Wythe County the required number of times and giving notice of the sale as required by Virginia Code § 55.1-321, as amended;

WHEREAS, 5S Properties LLC was the highest bidder at the sale;

WHEREAS, based upon a response from the Department of Defense Manpower Data Center to a military status request, none of the known interested parties are believed to be entitled to the protections afforded under the Servicemembers Civil Relief Act.

NOW THEREFORE WITNESSETH: That for and in consideration of the premises, the sum of $45,650.00 and other good and valuable consideration, the receipt of which is hereby acknowledged, the Grantor does hereby grant and convey unto the Grantee, with SPECIAL WARRANTY of title, the following described property located in Wythe County, Virginia:

> **ALL THAT CERTAIN TRACT OR PARCEL OF REAL ESTATE, WITH THE IMPROVEMENTS THEREON AND THE PRIVILEGES AND APPURTENANCES THERETO BELONGING SITUATE IN THE TOWN OF WYTHEVILLE, WYTHE COUNTY, VIRGINIA, MORE PARTICULARLY BOUNDED AND DESCRIBED AS FOLLOWS, TO - WIT: "BEGINNING AT A POINT IN THE CENTER LINE OF HIGHWAY NO. 11, OPPOSITE THE CORNER OF TERRY BROTHERS, AND RUNNING THENCE WITH THE CENTER LINE OF SAID HIGHWAY, S 75 DEG 10' W 100 FEET TO A STAKE; THENCE, N 16 DEG 15' W 300 FEET TO A STAKE; THENCE N. 75 DEG 10' E 100 FEET TO A STAKE IN TERRY BROTHERS' LINE; THENCE, RUNNING WITH THEIR LINE, S 16 DEG 15' E 300 FEET TO THE BEGINNING, CONTAINING 0.68 ACRES, MORE OR LESS, LESS THAT PORTION CONVEYED TO THE COMMONWEALTH OF VIRGINIA BY DEED DATED JULY 20, 1953, AND OF RECORD IN DEED BOOK 142, PAGE 227."**

commonly known as 980 W Lee Hwy, Wytheville, VA 24382

without reimposing any of the reservations, restrictions, easements and conditions affecting said property, this conveyance is made subject to all of them.

980 W Lee Hwy, Wytheville, VA 24382
BWW File No. VA-354311

IN WITNESS WHEREOF, Grantor, on the day and year hereinbefore written, has caused this Deed to be signed, sealed and delivered as its willful act and deed.

EQUITY TRUSTEES, LLC
Substitute Trustee

By Robert R. M
Robert R Michael
Executive Vice President
Date: July 26, 2023

COMMONWEALTH OF VIRGINIA)
COUNTY OF HENRICO) ss.

The foregoing Substitute Trustee's Deed was acknowledged before me on the 26th day of July, 2023 by Robert R Michael, Executive Vice President of Equity Trustees, LLC.

Notary Public
My Commission Expires: 4/30/2025

GRANTOR:

Equity Trustees, LLC
8100 Three Chopt Road, Suite 240
Richmond, VA 23229

GRANTEE:

5S Properties LLC
PO Box 264
Wytheville, VA 24382

JESSICA LEE CHANEY
NOTARY PUBLIC
REG. #7948182
MY COMMISSION EXPIRES
04/30/2025
COMMONWEALTH OF VIRGINIA

INSTRUMENT 230001927
RECORDED IN THE CLERK'S OFFICE OF
WYTHE CIRCUIT COURT ON
AUGUST 3, 2023 AT 03:31 PM
$106.50 GRANTOR TAX WAS PAID AS
REQUIRED BY SEC 58.1-802 OF THE VA. CODE
STATE: $53.25 LOCAL: $53.25
JEREMIAH E. MUSSER, CLERK
RECORDED BY: TLO

Teresa Lovelace

OFFICE OF THE COMMISSIONER OF ACCOUNT
CIRCUIT COURT OF THE COUNTY OF WYTHE
ACCOUNT OF SALE UNDER DEED OF TRUST
IN ACCORDANCE WITH §26-15, CODE OF VIRGINIA

ACCOUNT OF: EQUITY TRUSTEES, LLC, SUBSTITUTE TRUSTEE(S) (OR TRUSTEE(S)) UNDER DEED OF: CAROLYN FAULKNER WYATT, GRANTOR(S)

ADDRESS OF PROPERTY: 980 W. LEE HIGHWAY, WYTHEVILLE, VA 24382

The above Substitute Trustee(s) (or Trustee(s)) has exhibited before me a statement of account of the above sale, together with the vouchers for disbursements, and I have stated and settled and now report the account of the transaction. The said account was not completed until twenty-one days and more after it had been mentioned in a list of fiduciaries whose accounts were before me for settlement, posted at the front door of the courthouse of the said Court on February 7, 2024.

Respectfully submitted,

Randy Jones
Commissioner of Accounts

March 1, 2024

VIRGINIA:

In the Clerk's Office of the Circuit Court of the County of Wythe:

The report of Randy Jones, Commissioner of Accounts of this Court, upon the foregoing which was filed in the Clerk's Office of this Court on the 4 day of March, 2024, having remained therein more than 15 days and no exceptions having been filed thereto, is confirmed and admitted to record this 18 day of March, 2024.

TESTE:

Jeremiah E. Musser, Clerk

By: _____, D.C.

FORECLOSURE FINAL ACCOUNTING

COMMONWEALTH OF VIRGINIA
CIRCUIT COURT OF WYTHE COUNTY

Place of Sale: in the front of the Circuit Court building for Wythe County, 225 S. Fourth St., Wytheville, VA, or any such temporary alternative Circuit Court location designated by the Judges of the Circuit Court
Under Deed of Trust Dated: **04/24/2006**
Date Recorded: **04/28/2006 as Instrument Number 060001758**
Original Grantor(s): **Carolyn Faulkner Wyatt**
Owner(s) at Time of Sale: **Carolyn Faulkner Wyatt**
Legal Description: **ALL THAT CERTAIN TRACT OR PARCEL OF REAL ESTATE, WITH THE IMPROVEMENTS THEREON AND THE PRIVILEGES AND APPURTENANCES THERETO BELONGING SITUATE IN THE TOWN OF WYTHEVILLE, WYTHE COUNTY, VIRGINIA, MORE PARTICULARLY BOUNDED AND DESCRIBED AS FOLLOWS, TO -WIT: "BEGINNING AT A POINT IN THE CENTER LINE OF HIGHWAY NO. 11, OPPOSITE THE CORNER OF TERRY BROTHERS, AND RUNNING THENCE WITH THE CENTER LINE OF SAID HIGHWAY, S 75 DEG 10` W 100 FEET TO A STAKE; THENCE, N 16 DEG 15` W 300 FEET TO A STAKE; THENCE N. 75 DEG 10` E 100 FEET TO A STAKE IN TERRY BROTHERS` LINE; THENCE, RUNNING WITH THEIR LINE, S 16 DEG 15` E 300 FEET TO THE BEGINNING, CONTAINING 0.68 ACRES, MORE OR LESS, LESS THAT PORTION CONVEYED TO THE COMMONWEALTH OF VIRGINIA BY DEED DATED JULY 20, 1953, AND OF RECORD IN DEED BOOK 142, PAGE 227."**
Tax ID: **041A-004-0000-0001**
Street Address: **980 W Lee Hwy, Wytheville, VA 24382**
Trustee(s) or Substitute Trustee(s): **Equity Trustees LLC**
Deed of Appointment of Substitute Trustee Dated: **01/31/2022**
Date Recorded: **02/11/2022 as Instrument Number 220000401**
Requirements for publication under Deed of Trust: **Once a week for 2 weeks**
Published in: **The Roanoke Times**
Publication Dates: **06/05/2023 06/12/2023**
Sale Date and Time: **July 10, 2023 12:00 PM**
Highest and Last Bidder: **5S Properties LLC**
Current Tax Assessment: **$106,300.00**

SEE ATTACHED BREAKDOWN

Bid Price		$45,650.00
DISBURSEMENTS:		
Advertisement Costs for Publication of Sale (POC iao $919.04)* (The Roanoke Times)	$0.00	
Title Examination / Abstract (ServiceLink)	$0.00	
Taxes Paid Through Sale Date	$283.69	
Commissioner of Accounts (POC iao $368.00)*	$0.00	
BWW Law Group Certified and Express Mail Costs	$0.00	
Attorneys Fee (BWW Law Group, LLC) (POC iao $2,100.00)*	$0.00	
Equity Trustees LLC Trustees Fees	$0.00	
Recordation of Deed of Appointment of Sub Trustees (POC iao $26.00)*	$0.00	
Grantor`s Tax for recordation of Substitute Trustee`s Deed	$0.00	
Noteholder Proceeds to U.S. Bank Trust National Association, not in its individual capacity but solely as owner trustee for RCF 2 Acquisition Trust c/o U.S. Bank Trust National Association	$45,366.31	

TOTALS	**$45,650.00**	**$45,650.00**

EQUITY TRUSTEES, LLC
8100 Three Chopt Road, Suite 240
Richmond, VA 23229

By: _____
Printed Name: Terence Page
Title: Vice President
Equity Trustees, LLC

Date: 1/5/2024

*These line items were paid by the foreclosing lender outside of closing and were not deducted from proceeds of sale.

FORECLOSURE FINAL ACCOUNTING

To: The Commissioner of Accounts - Wythe County, Virginia

Re: Carolyn Faulkner Wyatt
980 W Lee Hwy, Wytheville, VA 24382
Foreclosure held on July 10, 2023

The following charges were necessary expenses of the foreclosure sale referenced above. The fees were paid by the Substitute Trustee, and charged to the account of the defaulting borrower. These expenses were paid outside of the closing between the Substitute Trustee and the foreclosure sale purchaser and therefore would not be detailed on the enclosed real estate closing settlement statement reflecting that transaction, however, the Substitute Trustee would like these expenses to be included in the Commissioner's final account:

Recordation of Deed of Appt of Substitute Trustee:	$26.00
Advertisement Costs for Publication of Sale:	$919.04
Title Examination/Abstract:	$0.00
Commissioner of Accounts:	$368.00
Attorneys Fee:	$2,100.00
Trustees Fee:	$0.00
	$3,413.04

Foreclosure sale on the property located at: 980 W Lee Hwy, Wytheville, VA 24382

Held on: July 10, 2023

Mortgagor(s): Carolyn Faulkner Wyatt

BREAKDOWN OF CREDIT TO THE NOTE

$45,366.31 was credited by foreclosure as follows:

FC Expenses Advanced by Lender (as on Addendum)	$3,413.04
Interest @ 6.500% From 1/1/2020-7/10/2023	$11,611.07
Principal Balance	$30,342.20
TOTAL:	**$45,366.31**

VIRGINIA: IN THE OFFICE OF THE CLERK OF THE CIRCUIT COURT OF WYTHE COUNTY,

March 4, 2024, the foregoing writing was this day presented in said office by Randy Jones, Commissioner of Accounts, inspected, approved, and ordered to be recorded.

TESTE: *Ashley King*, Deputy Clerk

VIRGINIA: IN THE CIRCUIT COURT OF WYTHE COUNTY **March 18, 2024.** THE FOREGOING WRITING HAVING BEEN FILED IN THE SAID OFFICE FOR 15 DAYS, AND NO EXCEPTIONS HAVING BEEN TAKEN THERETO, THE SAME STANDS CONFIRMED AND IS ORDERED TO BE RECORDED.

TESTE: *Ashley King*, Deputy Clerk

Prepared By and Return To:

Collateral Department
Meridian Asset Services, LLC
3201 34th Street South, Suite 310
St. Petersburg, FL 33711
(239) 351-2442

APN/PIN# 041A-004-0000-000

230000909

Space above for Recorder's use

17480603

ASSIGNMENT OF DEED OF TRUST

FOR GOOD AND VALUABLE CONSIDERATION, the sufficiency of which is hereby acknowledged, the undersigned, **FV-I, INC. IN TRUST FOR MORGAN STANLEY MORTGAGE CAPITAL HOLDINGS LLC**, whose address is **1585 BROADWAY, NEW YORK, NY 10036**, (ASSIGNOR), does hereby grant, assign and transfer to **U.S. BANK TRUST NATIONAL ASSOCIATION, NOT IN ITS INDIVIDUAL CAPACITY BUT SOLELY AS OWNER TRUSTEE FOR RCF 2 ACQUISITION TRUST**, whose address is **C/O SELENE FINANCE LP, 3501 OLYMPUS BLVD., SUITE 500, DALLAS, TX 75019**, (ASSIGNEE), its successors, transferees and assigns forever, all beneficial interest under that certain deed of trust, together with the certain note(s) described therein with all interest, all liens, and any rights due or to become due thereon.

Date of Deed of Trust: **4/24/2006**
Original Loan Amount: **$66,500.00**
Executed by (Borrower(s)): **CAROLYN FAULKNER WYATT**
Original Trustee: **KAREN J. GLASCOCK AND JOHN MYERS**
Original Beneficiary: **BRANCH BANKING AND TRUST COMPANY OF VIRGINIA**
Filed of Record: In Book **N/A**, Page **N/A**
Document/Instrument No: **060001758** in the Recording District of **Wythe, VA**, Recorded on **4/28/2006**.

Property more commonly described as: **980 WEST LEE HWY, WYTHEVILLE, VIRGINIA 24382**

IN WITNESS WHEREOF, the undersigned by its duly elected officers and pursuant to proper authority of its board of directors has duly executed, sealed, acknowledged and delivered this assignment.

Date: **3/22/2023**

FV-I, INC. IN TRUST FOR MORGAN STANLEY MORTGAGE CAPITAL HOLDINGS LLC, BY MERIDIAN ASSET SERVICES, LLC, ITS ATTORNEY-IN-FACT

By: **PATRICK O'BRIEN**
Title: **VICE PRESIDENT**

Witness Name: **SHULA FERGUSON**

A NOTARY PUBLIC OR OTHER OFFICER COMPLETING THIS CERTIFICATE VERIFIES ONLY THE IDENTITY OF THE INDIVIDUAL WHO SIGNED THE DOCUMENT TO WHICH THIS CERTIFICATE IS ATTACHED, AND NOT THE TRUTHFULNESS, ACCURACY, OR VALIDITY OF THAT DOCUMENT

State of **FLORIDA**
County of **PINELLAS**

On **3/22/2023**, before me, **TRINH PHAM**, a Notary Public, personally appeared **PATRICK O'BRIEN, VICE PRESIDENT** of/for **MERIDIAN ASSET SERVICES, LLC, AS ATTORNEY-IN-FACT FOR FV-I, INC. IN TRUST FOR MORGAN STANLEY MORTGAGE CAPITAL HOLDINGS LLC**, personally known to me, or who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument. I certify under PENALTY OF PERJURY under the laws of the State of **FLORIDA** that the foregoing paragraph is true and correct. I further certify the foregoing instrument was acknowledged before me by means of ☑ physical presence or ☐ online notarization and that PATRICK O'BRIEN, signed, sealed, attested and delivered this document as a voluntary act in my presence.

Witness my hand and official seal.

(Notary Name): **TRINH PHAM**
My commission expires: **08/08/2026**

FLORIDA NOTARY ASSOCIATION SINCE 1970
TRINH PHAM
Notary Public
State of Florida
Comm# HH298552
Expires 8/8/2026

INSTRUMENT 230000909
RECORDED IN THE CLERK'S OFFICE OF
WYTHE CIRCUIT COURT ON
APRIL 13, 2023 AT 03:44 PM
JEREMIAH E. MUSSER, CLERK
RECORDED BY: MEK

4342010

CLR220000401

BWW #: VA-354311

PREPARED BY / PLEASE RETURN TO:
BWW Law Group, LLC
6003 Executive Blvd, Suite 101
Rockville, MD 20852

Tax ID: 041A-004-0000-0001

APPOINTMENT OF SUBSTITUTE TRUSTEE

FV-I, INC. IN TRUST FOR MORGAN STANLEY MORTGAGE CAPITAL HOLDINGS LLC, Grantor herein, as the beneficiary or authorized agent of the beneficiary of the below described Deed of Trust, does hereby remove the Original Trustee(s) as Trustee(s), and also hereby removes any substitute trustee or trustees who may have been previously appointed in place of the Original Trustee(s), and hereby appoints EQUITY TRUSTEES, LLC, a Virginia limited liability company whose place of business is 8100 Three Chopt Road, Suite 240, Richmond, VA 23229, as Substitute Trustee/Grantee. This appointment is made under the April 24, 2006 Deed of Trust conveying the real property known as 980 W Lee Hwy, Wytheville, VA 24382 and executed by Carolyn Faulkner WYATT (identified here as Grantor(s) for recordation purposes), in which MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC., solely as nominee for Branch Banking and Trust Company of Virginia its successors and assigns, is named original beneficiary and Karen J. GLASCOCK and John MYERS as original trustee (the "Deed of Trust"). This Deed of Trust was recorded as Instrument No. 060001758 in the land records of the Wythe County Circuit Court Clerk's Office. Said Substitute Trustee shall, in accordance with the provisions of said Deed of Trust, succeed to all the title, powers and duties conferred upon the Original Trustee(s) by the terms of said Deed of Trust and by applicable law.

FV-I, INC. IN TRUST FOR MORGAN STANLEY MORTGAGE CAPITAL HOLDINGS LLC
By: Specialized Loan Servicing LLC, as Attorney-in-Fact

Name: Ami McKernan
Title: Second Assistant Vice President
Date: JAN 31 2022

ARAPAHOE COUNTY:)
STATE OF COLORADO:) ss.

The foregoing instrument was acknowledged before me this 31st day of January, 2022 by Ami McKernan as Second Assistant Vice President of Specialized Loan Servicing LLC, as Attorney-in-Fact for FV-I, Inc. in trust for Morgan Stanley Mortgage Capital Holdings LLC.

MELINDA M. ARMSTRONG
NOTARY PUBLIC
STATE OF COLORADO
NOTARY ID 20014038212
MY COMMISSION EXPIRES MARCH 01, 2022

(Notary Seal)

Notary Public Melinda M. Armstrong
My Commission Expires: March 1, 2022

INSTRUMENT 220000401
RECORDED IN THE CLERK'S OFFICE OF
WYTHE CIRCUIT COURT ON
FEBRUARY 11, 2022 AT 09:49 AM
JEREMIAH E. MUSSER, CLERK
RECORDED BY: DRD

Examined Feb 11, 2022
BWW Law Group
Tests: Dep. Clerk

Send All Notices to Assignee

RECORDING REQUESTED AND PREPARED BY:
TRUIST BANK
BARBARA MOORE
1001 SEMMES AVENUE
RVW 5303 ASSIGNMENT DEPT
RICHMOND, VA 23224

AND WHEN RECORDED MAIL TO:
TRUIST BANK
TRUIST BANK
1001 SEMMES AVENUE
RVW 5303 ASSIGNMENT DEPT
RICHMOND, VA 23224

Parcel Tax ID: **41A-4-1**

Loan #: **0051749976**
Investor Loan #: **6921668129**

ASSIGNMENT OF DEED OF TRUST

For good and valuable consideration, the sufficiency of which is hereby acknowledged, **TRUIST BANK FORMERLY KNOWN AS BRANCH BANKING & TRUST COMPANY , 1001 SEMMES AVENUE, RICHMOND, VA 23224 800,** by these presents does convey, assign, transfer and set over to:
FV-I, INC. IN TRUST FOR MORGAN STANLEY MORTGAGE CAPITAL HOLDINGS LLC., 1585 BROADWAY NEW YORK, NY 10036, the following described Deed of Trust, with all interest, all liens, and any rights due or to become due thereon. Said Deed of Trust for **$66500.00** is recorded in the State of **Virginia** , County of **Wythe** Official Records, dated **04/24/2006** and recorded on **04/28/2006,** as Instrument No. **060001758** in Book No. **N/A,** at Page No. **N/A**

Original Trustor/Grantor: **Carolyn Faulkner WYATT**
Original Trustee/Grantee: KAREN J. GLASCOCK AND JOHN MYERS
Original Beneficiary: **MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC., AS BENEFICIARY, AS NOMINEE FOR BRANCH BANKING AND TRUST COMPANY OF VIRGINIA, ITS SUCCESSORS AND ASSIGNS**
Property Address: **980 W LEE HWY WYTHEVILLE, VA 24382**

Date: **10/19/2021.**

TRUIST BANK FORMERLY KNOWN AS BRANCH BANKING & TRUST COMPANY

By: _____

Name: **DOYLE MITCHELL**

Title: **Assistant Vice President**

STATE OF **Virginia**
COUNTY OF **RICHMOND** } s.s.

On **10/19/2021,** before me, **KIA LASHELL TARRY,** Notary Public, personally appeared **DOYLE MITCHELL, Assistant Vice President** of **TRUIST BANK FORMERLY KNOWN AS BRANCH BANKING & TRUST COMPANY**, personally known to me (or proved to me the basis of satisfactory evidence) to be the person whose name is subscribed to the within instrument and acknowledged to me that she/he/they executed the same in her/his/their authorized capacity(ies), and that by her/his/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

Witness my hand and official seal.

KIA LASHELL TARRY
Notary Public
Commonwealth of Virginia
Registration No. 350794
My Commission Expires Apr 30, 2024

_____

Notary Public: **KIA LASHELL TARRY**
My Commission Expires: **04/30/2024**
Commission #: **350794**

Drafted By: **BARBARA MOORE**

INSTRUMENT 210003390
RECORDED IN THE CLERK'S OFFICE OF
WYTHE CIRCUIT COURT ON
OCTOBER 20, 2021 AT 09:08 AM
JEREMIAH E. MUSSER, CLERK
RECORDED BY: MEK

000001 APR14'14

140000872

After recording, return to and prepared by:
Deborah S. Kirkpatrick, P.C.
P. O. Box 10275
Virginia Beach, VA 23450-0275
(757) 233-0281

MIN: 100159969216681299

RECEIVED APR 11 2014 CIRCUIT COURT OF WYTHE COUNTY

ASSIGNMENT OF DEED OF TRUST

KNOW ALL MEN BY THESE PRESENT that, **MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC.**, as nominee for Branch Banking and Trust Company of Virginia, and its successors and assigns, whose address is P.O. Box 2026, Flint, MI 48501-2026, phone number 888-679-6377, for value received, does hereby grant, assign, transfer and sell over unto, **BRANCH BANKING AND TRUST COMPANY**, P.O. Box 1847, Wilson, NC 27894-1847, its successors and/or assigns a certain Deed of Trust dated April 24, 2006 executed and delivered by **CAROLYN FAULKNER WYATT**, to **KAREN J. GLASCOCK and JOHN MYERS**, Trustees, and recorded April 28, 2006 as Instrument Number 060001758, among the Land Records of the Clerk's Office, Circuit Court of Wythe County, Virginia, all sums of money due and to become due thereon.

Mortgage Amount: $66,500.00

Property Address: 980 West Lee Hwy, Wytheville, VA 24382

Tax ID Number: 041A-004-0000-0001

Executed this 1 day of APRIL, 2014.

MORTGAGE ELECTRONIC REGISTRATION SYSTEMS INC. CORPORATE SEAL 1999 DELAWARE

In the presence of:

Witness

Mortgage Electronic Registration Systems, Inc., as nominee for Branch Banking and Trust Company of Virginia and its successors and assigns

By: Heather T Young
Office: AVP

TOBIE BISSETTE JOBE NOTARY PUBLIC WILSON COUNTY, N. C.

STATE OF NC:
COUNTY OF WILSON:

On 4-1-14, before me, the undersigned, personally appeared Heather T Young, known to me to be the person who executed the within instrument as the AVP of Mortgage Electronic Registration Systems, Inc., as nominee for Branch Banking and Trust Company of Virginia and its successors and assigns the Corporation that executed the within instrument and acknowledged to me that the Corporation executed the within instrument pursuant to its by-laws or a resolution of its board of directors.

Witness my hand and official seal:

Notary Public

My Commission Expires: August 9, 2014

Examined April 11, 2014
Deborah S. Kirkpatrick, P.C.
Teste: Lori Hinn, Dep. Clerk

INSTRUMENT #140000872
RECORDED IN THE CLERK'S OFFICE OF WYTHE ON
APRIL 11, 2014 AT 09:35AM
HAYDEN H. HORNEY, CLERK
RECORDED BY: LLK

060143 MAY 1 '06

Return To: 060001758

Tax Map Reference #:

RPC/Parcel ID #:

Prepared By:

[Space Above This Line For Recording Data]

DEED OF TRUST

MIN 100159969216681299

The following information, as further defined below, is provided in accordance with Virginia law:

This Deed of Trust is given by Carolyn Faulkner Wyatt

, as Borrower (trustor), to Karen J. Glascock, 1308 Devil's Reach Road, Suite 200, Woodbridge, VA 22192 and John Myers, 8006 Discovery Dr., Suite 401, Richmond, VA 23229

, as Trustee, for the benefit of Mortgage Electronic Registration Systems, Inc. as beneficiary.

DEFINITIONS

Words used in multiple sections of this document are defined below and other words are defined in Sections 3, 11, 13, 18, 20 and 21. Certain rules regarding the usage of words used in this document are also provided in Section 16.

Examined 4-28, 2006
New Century Title

Testes: Shana Dix, Dep. Clerk

050144 MAY 1 '06

(A) **"Security Instrument"** means this document, which is dated April 24, 2006, together with all Riders to this document.

(B) **"Borrower"** is Carolyn Faulkner Wyatt

Borrower is the trustor under this Security Instrument.

(C) **"Lender"** is Branch Banking and Trust Company of Virginia

Lender is a Corporation
organized and existing under the laws of Virginia
Lender's address is 5101 Cleveland Street, Virginia Beach, VA 23462

(D) **"Trustee"** is Karen J. Glascock

Trustee (whether one or more persons) is a Virginia resident and/or a United States- or Virginia-chartered corporation whose principal office is located in Virginia. Trustee's address is 1308 Devil's Reach Road, Suite 200, Woodbridge, VA 22192
"Trustee" is John Myers

Trustee (whether one or more persons) is a Virginia resident and/or a United States- or Virginia-chartered corporation whose principal office is located in Virginia. Trustee's address is 8006 Discovery Dr., Suite 401, Richmond, VA 23229

(E) **"MERS"** is Mortgage Electronic Registration Systems, Inc. MERS is a separate corporation that is acting solely as a nominee for Lender and Lender's successors and assigns. **MERS is the beneficiary under this Security Instrument.** MERS is organized and existing under the laws of Delaware, and has an address and telephone number of P.O. Box 2026, Flint, MI 48501-2026, tel. (888) 679-MERS.

(F) **"Note"** means the promissory note signed by Borrower and dated as of the date hereof. The Note states that Borrower owes Lender Sixty Six Thousand Five Hundred and No/100 Dollars (U.S. $ 66,500.00) plus interest. Borrower has promised to pay this debt in regular Periodic Payments and to pay the debt in full not later than May 1, 2036. The interest rate stated in the Note is Six and One Half percent (6.500 %).
If this Security Instrument is an adjustable rate mortgage loan, this initial rate is subject to change in accordance with the attached Adjustable Rate Rider.

(G) **"Property"** means the property that is described below under the heading "Transfer of Rights in the Property."

050145 MAY 1 '06

(H) "Loan" means the debt evidenced by the Note, plus interest, any prepayment charges and late charges due under the Note, and all sums due under this Security Instrument, plus interest.

(I) "Riders" means all Riders to this Security Instrument that are executed by Borrower. The following Riders are to be executed by Borrower [check box as applicable]:

☐ Adjustable Rate Rider	☐ Condominium Rider	☐ Second Home Rider
☐ Balloon Rider	☐ Planned Unit Development Rider	☐ 1-4 Family Rider
☐ VA Rider	☐ Biweekly Payment Rider	☒ Other(s) [specify] Schedule A

(J) "Applicable Law" means all controlling applicable federal, state and local statutes, regulations, ordinances and administrative rules and orders (that have the effect of law) as well as all applicable final, non-appealable judicial opinions.

(K) "Community Association Dues, Fees, and Assessments" means all dues, fees, assessments and other charges that are imposed on Borrower or the Property by a condominium association, homeowners association or similar organization.

(L) "Electronic Funds Transfer" means any transfer of funds, other than a transaction originated by check, draft, or similar paper instrument, which is initiated through an electronic terminal, telephonic instrument, computer, or magnetic tape so as to order, instruct, or authorize a financial institution to debit or credit an account. Such term includes, but is not limited to, point-of-sale transfers, automated teller machine transactions, transfers initiated by telephone, wire transfers, and automated clearinghouse transfers.

(M) "Escrow Items" means those items that are described in Section 3.

(N) "Miscellaneous Proceeds" means any compensation, settlement, award of damages, or proceeds paid by any third party (other than insurance proceeds paid under the coverages described in Section 5) for: (i) damage to, or destruction of, the Property; (ii) condemnation or other taking of all or any part of the Property; (iii) conveyance in lieu of condemnation; or (iv) misrepresentations of, or omissions as to, the value and/or condition of the Property.

(O) "Mortgage Insurance" means insurance protecting Lender against the nonpayment of, or default on, the Loan.

(P) "Periodic Payment" means the regularly scheduled amount due for (i) principal and interest under the Note, plus (ii) any amounts under Section 3 of this Security Instrument.

(Q) "RESPA" means the Real Estate Settlement Procedures Act (12 U.S.C. Section 2601 et seq.) and its implementing regulation, Regulation X (24 C.F.R. Part 3500), as they might be amended from time to time, or any additional or successor legislation or regulation that governs the same subject matter. As used in this Security Instrument, "RESPA" refers to all requirements and restrictions that are imposed in regard to a "federally related mortgage loan" even if the Loan does not qualify as a "federally related mortgage loan" under RESPA.

(R) "Successor in Interest of Borrower" means any party that has taken title to the Property, whether or not that party has assumed Borrower's obligations under the Note and/or this Security Instrument.

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TRANSFER OF RIGHTS IN THE PROPERTY

The beneficiary of this Security Instrument is MERS (solely as nominee for Lender and Lender's successors and assigns) and the successors and assigns of MERS. This Security Instrument secures to Lender: (i) the repayment of the Loan, and all renewals, extensions and modifications of the Note; and (ii) the performance of Borrower's covenants and agreements under this Security Instrument and the Note. For this purpose, Borrower irrevocably grants and conveys to Trustee, in trust, with power of sale, the following described property located in the County/City [Type of Recording Jurisdiction] of Wythe [Name of Recording Jurisdiction]:

see attached Schedule A

which currently has the address of
980 West Lee Hwy [Street]
Wytheville [City/County], Virginia 24382 [Zip Code]
("Property Address"):

TOGETHER WITH all the improvements now or hereafter erected on the property, and all easements, appurtenances, and fixtures now or hereafter a part of the property. All replacements and additions shall also be covered by this Security Instrument. All of the foregoing is referred to in this Security Instrument as the "Property." Borrower understands and agrees that MERS holds only legal title to the interests granted by Borrower in this Security Instrument, but, if necessary to comply with law or custom, MERS (as nominee for Lender and Lender's successors and assigns) has the right: to exercise any or all of those interests, including, but not limited to, the right to foreclose and sell the Property; and to take any action required of Lender including, but not limited to, releasing and canceling this Security Instrument.

BORROWER COVENANTS that Borrower is lawfully seised of the estate hereby conveyed and has the right to grant and convey the Property and that the Property is unencumbered, except for encumbrances of record. Borrower warrants and will defend generally the title to the Property against all claims and demands, subject to any encumbrances of record.

THIS SECURITY INSTRUMENT combines uniform covenants for national use and non-uniform covenants with limited variations by jurisdiction to constitute a uniform security instrument covering real property.

UNIFORM COVENANTS. Borrower and Lender covenant and agree as follows:

1. Payment of Principal, Interest, Escrow Items, Prepayment Charges, and Late Charges. Borrower shall pay when due the principal of, and interest on, the debt evidenced by the Note and any prepayment charges and late charges due under the Note. Borrower shall also pay funds for Escrow Items pursuant to Section 3. Payments due under the Note and this Security Instrument shall be made in U.S.

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currency. However, if any check or other instrument received by Lender as payment under the Note or this Security Instrument is returned to Lender unpaid, Lender may require that any or all subsequent payments due under the Note and this Security Instrument be made in one or more of the following forms, as selected by Lender: (a) cash; (b) money order; (c) certified check, bank check, treasurer's check or cashier's check, provided any such check is drawn upon an institution whose deposits are insured by a federal agency, instrumentality, or entity; or (d) Electronic Funds Transfer.

Payments are deemed received by Lender when received at the location designated in the Note or at such other location as may be designated by Lender in accordance with the notice provisions in Section 15. Lender may return any payment or partial payment if the payment or partial payments are insufficient to bring the Loan current. Lender may accept any payment or partial payment insufficient to bring the Loan current, without waiver of any rights hereunder or prejudice to its rights to refuse such payment or partial payments in the future, but Lender is not obligated to apply such payments at the time such payments are accepted. If each Periodic Payment is applied as of its scheduled due date, then Lender need not pay interest on unapplied funds. Lender may hold such unapplied funds until Borrower makes payment to bring the Loan current. If Borrower does not do so within a reasonable period of time, Lender shall either apply such funds or return them to Borrower. If not applied earlier, such funds will be applied to the outstanding principal balance under the Note immediately prior to foreclosure. No offset or claim which Borrower might have now or in the future against Lender shall relieve Borrower from making payments due under the Note and this Security Instrument or performing the covenants and agreements secured by this Security Instrument.

2. Application of Payments or Proceeds. Except as otherwise described in this Section 2, all payments accepted and applied by Lender shall be applied in the following order of priority: (a) interest due under the Note; (b) principal due under the Note; (c) amounts due under Section 3. Such payments shall be applied to each Periodic Payment in the order in which it became due. Any remaining amounts shall be applied first to late charges, second to any other amounts due under this Security Instrument, and then to reduce the principal balance of the Note.

If Lender receives a payment from Borrower for a delinquent Periodic Payment which includes a sufficient amount to pay any late charge due, the payment may be applied to the delinquent payment and the late charge. If more than one Periodic Payment is outstanding, Lender may apply any payment received from Borrower to the repayment of the Periodic Payments if, and to the extent that, each payment can be paid in full. To the extent that any excess exists after the payment is applied to the full payment of one or more Periodic Payments, such excess may be applied to any late charges due. Voluntary prepayments shall be applied first to any prepayment charges and then as described in the Note.

Any application of payments, insurance proceeds, or Miscellaneous Proceeds to principal due under the Note shall not extend or postpone the due date, or change the amount, of the Periodic Payments.

3. Funds for Escrow Items. Borrower shall pay to Lender on the day Periodic Payments are due under the Note, until the Note is paid in full, a sum (the "Funds") to provide for payment of amounts due for: (a) taxes and assessments and other items which can attain priority over this Security Instrument as a lien or encumbrance on the Property; (b) leasehold payments or ground rents on the Property, if any; (c) premiums for any and all insurance required by Lender under Section 5; and (d) Mortgage Insurance premiums, if any, or any sums payable by Borrower to Lender in lieu of the payment of Mortgage Insurance premiums in accordance with the provisions of Section 10. These items are called "Escrow Items." At origination or at any time during the term of the Loan, Lender may require that Community Association Dues, Fees, and Assessments, if any, be escrowed by Borrower, and such dues, fees and assessments shall be an Escrow Item. Borrower shall promptly furnish to Lender all notices of amounts to be paid under this Section. Borrower shall pay Lender the Funds for Escrow Items unless Lender waives Borrower's obligation to pay the Funds for any or all Escrow Items. Lender may waive Borrower's obligation to pay to Lender Funds for any or all Escrow Items at any time. Any such waiver may only be in writing. In the event of such waiver, Borrower shall pay directly, when and where payable, the amounts due for any Escrow Items for which payment of Funds has been waived by Lender and, if Lender requires, shall furnish to Lender receipts evidencing such payment within such time period as Lender may require. Borrower's obligation to make such payments and to provide receipts shall for all purposes be deemed to be a covenant and agreement contained in this Security Instrument, as the phrase "covenant and agreement" is used in Section 9. If Borrower is obligated to pay Escrow Items directly, pursuant to a waiver, and Borrower fails to pay the amount due for an Escrow Item, Lender may exercise its rights under Section 9 and pay such amount and Borrower shall then be obligated under Section 9 to repay to Lender any such

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amount. Lender may revoke the waiver as to any or all Escrow Items at any time by a notice given in accordance with Section 15 and, upon such revocation, Borrower shall pay to Lender all Funds, and in such amounts, that are then required under this Section 3.

Lender may, at any time, collect and hold Funds in an amount (a) sufficient to permit Lender to apply the Funds at the time specified under RESPA, and (b) not to exceed the maximum amount a lender can require under RESPA. Lender shall estimate the amount of Funds due on the basis of current data and reasonable estimates of expenditures of future Escrow Items or otherwise in accordance with Applicable Law.

The Funds shall be held in an institution whose deposits are insured by a federal agency, instrumentality, or entity (including Lender, if Lender is an institution whose deposits are so insured) or in any Federal Home Loan Bank. Lender shall apply the Funds to pay the Escrow Items no later than the time specified under RESPA. Lender shall not charge Borrower for holding and applying the Funds, annually analyzing the escrow account, or verifying the Escrow Items, unless Lender pays Borrower interest on the Funds and Applicable Law permits Lender to make such a charge. Unless an agreement is made in writing or Applicable Law requires interest to be paid on the Funds, Lender shall not be required to pay Borrower any interest or earnings on the Funds. Borrower and Lender can agree in writing, however, that interest shall be paid on the Funds. Lender shall give to Borrower, without charge, an annual accounting of the Funds as required by RESPA.

If there is a surplus of Funds held in escrow, as defined under RESPA, Lender shall account to Borrower for the excess funds in accordance with RESPA. If there is a shortage of Funds held in escrow, as defined under RESPA, Lender shall notify Borrower as required by RESPA, and Borrower shall pay to Lender the amount necessary to make up the shortage in accordance with RESPA, but in no more than 12 monthly payments. If there is a deficiency of Funds held in escrow, as defined under RESPA, Lender shall notify Borrower as required by RESPA, and Borrower shall pay to Lender the amount necessary to make up the deficiency in accordance with RESPA, but in no more than 12 monthly payments.

Upon payment in full of all sums secured by this Security Instrument, Lender shall promptly refund to Borrower any Funds held by Lender.

4. Charges; Liens. Borrower shall pay all taxes, assessments, charges, fines, and impositions attributable to the Property which can attain priority over this Security Instrument, leasehold payments or ground rents on the Property, if any, and Community Association Dues, Fees, and Assessments, if any. To the extent that these items are Escrow Items, Borrower shall pay them in the manner provided in Section 3.

Borrower shall promptly discharge any lien which has priority over this Security Instrument unless Borrower: (a) agrees in writing to the payment of the obligation secured by the lien in a manner acceptable to Lender, but only so long as Borrower is performing such agreement; (b) contests the lien in good faith by, or defends against enforcement of the lien in, legal proceedings which in Lender's opinion operate to prevent the enforcement of the lien while those proceedings are pending, but only until such proceedings are concluded; or (c) secures from the holder of the lien an agreement satisfactory to Lender subordinating the lien to this Security Instrument. If Lender determines that any part of the Property is subject to a lien which can attain priority over this Security Instrument, Lender may give Borrower a notice identifying the lien. Within 10 days of the date on which that notice is given, Borrower shall satisfy the lien or take one or more of the actions set forth above in this Section 4.

Lender may require Borrower to pay a one-time charge for a real estate tax verification and/or reporting service used by Lender in connection with this Loan.

5. Property Insurance. Borrower shall keep the improvements now existing or hereafter erected on the Property insured against loss by fire, hazards included within the term "extended coverage," and any other hazards including, but not limited to, earthquakes and floods, for which Lender requires insurance. This insurance shall be maintained in the amounts (including deductible levels) and for the periods that Lender requires. What Lender requires pursuant to the preceding sentences can change during the term of the Loan. The insurance carrier providing the insurance shall be chosen by Borrower subject to Lender's right to disapprove Borrower's choice, which right shall not be exercised unreasonably. Lender may require Borrower to pay, in connection with this Loan, either: (a) a one-time charge for flood zone determination, certification and tracking services; or (b) a one-time charge for flood zone determination and certification services and subsequent charges each time remappings or similar changes occur which reasonably might affect such determination or certification. Borrower shall also be responsible for the

payment of any fees imposed by the Federal Emergency Management Agency in connection with the review of any flood zone determination resulting from an objection by Borrower.

If Borrower fails to maintain any of the coverages described above, Lender may obtain insurance coverage, at Lender's option and Borrower's expense. Lender is under no obligation to purchase any particular type or amount of coverage. Therefore, such coverage shall cover Lender, but might or might not protect Borrower, Borrower's equity in the Property, or the contents of the Property, against any risk, hazard or liability and might provide greater or lesser coverage than was previously in effect. Borrower acknowledges that the cost of the insurance coverage so obtained might significantly exceed the cost of insurance that Borrower could have obtained. Any amounts disbursed by Lender under this Section 5 shall become additional debt of Borrower secured by this Security Instrument. These amounts shall bear interest at the Note rate from the date of disbursement and shall be payable, with such interest, upon notice from Lender to Borrower requesting payment.

All insurance policies required by Lender and renewals of such policies shall be subject to Lender's right to disapprove such policies, shall include a standard mortgage clause, and shall name Lender as mortgagee and/or as an additional loss payee. Lender shall have the right to hold the policies and renewal certificates. If Lender requires, Borrower shall promptly give to Lender all receipts of paid premiums and renewal notices. If Borrower obtains any form of insurance coverage, not otherwise required by Lender, for damage to, or destruction of, the Property, such policy shall include a standard mortgage clause and shall name Lender as mortgagee and/or as an additional loss payee.

In the event of loss, Borrower shall give prompt notice to the insurance carrier and Lender. Lender may make proof of loss if not made promptly by Borrower. Unless Lender and Borrower otherwise agree in writing, any insurance proceeds, whether or not the underlying insurance was required by Lender, shall be applied to restoration or repair of the Property, if the restoration or repair is economically feasible and Lender's security is not lessened. During such repair and restoration period, Lender shall have the right to hold such insurance proceeds until Lender has had an opportunity to inspect such Property to ensure the work has been completed to Lender's satisfaction, provided that such inspection shall be undertaken promptly. Lender may disburse proceeds for the repairs and restoration in a single payment or in a series of progress payments as the work is completed. Unless an agreement is made in writing or Applicable Law requires interest to be paid on such insurance proceeds, Lender shall not be required to pay Borrower any interest or earnings on such proceeds. Fees for public adjusters, or other third parties, retained by Borrower shall not be paid out of the insurance proceeds and shall be the sole obligation of Borrower. If the restoration or repair is not economically feasible or Lender's security would be lessened, the insurance proceeds shall be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower. Such insurance proceeds shall be applied in the order provided for in Section 2.

If Borrower abandons the Property, Lender may file, negotiate and settle any available insurance claim and related matters. If Borrower does not respond within 30 days to a notice from Lender that the insurance carrier has offered to settle a claim, then Lender may negotiate and settle the claim. The 30-day period will begin when the notice is given. In either event, or if Lender acquires the Property under Section 22 or otherwise, Borrower hereby assigns to Lender (a) Borrower's rights to any insurance proceeds in an amount not to exceed the amounts unpaid under the Note or this Security Instrument, and (b) any other of Borrower's rights (other than the right to any refund of unearned premiums paid by Borrower) under all insurance policies covering the Property, insofar as such rights are applicable to the coverage of the Property. Lender may use the insurance proceeds either to repair or restore the Property or to pay amounts unpaid under the Note or this Security Instrument, whether or not then due.

6. Occupancy. Borrower shall occupy, establish, and use the Property as Borrower's principal residence within 60 days after the execution of this Security Instrument and shall continue to occupy the Property as Borrower's principal residence for at least one year after the date of occupancy, unless Lender otherwise agrees in writing, which consent shall not be unreasonably withheld, or unless extenuating circumstances exist which are beyond Borrower's control.

7. Preservation, Maintenance and Protection of the Property; Inspections. Borrower shall not destroy, damage or impair the Property, allow the Property to deteriorate or commit waste on the Property. Whether or not Borrower is residing in the Property, Borrower shall maintain the Property in order to prevent the Property from deteriorating or decreasing in value due to its condition. Unless it is determined pursuant to Section 5 that repair or restoration is not economically feasible, Borrower shall promptly repair the Property if damaged to avoid further deterioration or damage. If insurance or condemnation proceeds are paid in

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connection with damage to, or the taking of, the Property, Borrower shall be responsible for repairing or restoring the Property only if Lender has released proceeds for such purposes. Lender may disburse proceeds for the repairs and restoration in a single payment or in a series of progress payments as the work is completed. If the insurance or condemnation proceeds are not sufficient to repair or restore the Property, Borrower is not relieved of Borrower's obligation for the completion of such repair or restoration.

Lender or its agent may make reasonable entries upon and inspections of the Property. If it has reasonable cause, Lender may inspect the interior of the improvements on the Property. Lender shall give Borrower notice at the time of or prior to such an interior inspection specifying such reasonable cause.

8. Borrower's Loan Application. Borrower shall be in default if, during the Loan application process, Borrower or any persons or entities acting at the direction of Borrower or with Borrower's knowledge or consent gave materially false, misleading, or inaccurate information or statements to Lender (or failed to provide Lender with material information) in connection with the Loan. Material representations include, but are not limited to, representations concerning Borrower's occupancy of the Property as Borrower's principal residence.

9. Protection of Lender's Interest in the Property and Rights Under this Security Instrument. If (a) Borrower fails to perform the covenants and agreements contained in this Security Instrument, (b) there is a legal proceeding that might significantly affect Lender's interest in the Property and/or rights under this Security Instrument (such as a proceeding in bankruptcy, probate, for condemnation or forfeiture, for enforcement of a lien which may attain priority over this Security Instrument or to enforce laws or regulations), or (c) Borrower has abandoned the Property, then Lender may do and pay for whatever is reasonable or appropriate to protect Lender's interest in the Property and rights under this Security Instrument, including protecting and/or assessing the value of the Property, and securing and/or repairing the Property. Lender's actions can include, but are not limited to: (a) paying any sums secured by a lien which has priority over this Security Instrument; (b) appearing in court; and (c) paying reasonable attorneys' fees to protect its interest in the Property and/or rights under this Security Instrument, including its secured position in a bankruptcy proceeding. Securing the Property includes, but is not limited to, entering the Property to make repairs, change locks, replace or board up doors and windows, drain water from pipes, eliminate building or other code violations or dangerous conditions, and have utilities turned on or off. Although Lender may take action under this Section 9, Lender does not have to do so and is not under any duty or obligation to do so. It is agreed that Lender incurs no liability for not taking any or all actions authorized under this Section 9.

Any amounts disbursed by Lender under this Section 9 shall become additional debt of Borrower secured by this Security Instrument. These amounts shall bear interest at the Note rate from the date of disbursement and shall be payable, with such interest, upon notice from Lender to Borrower requesting payment.

If this Security Instrument is on a leasehold, Borrower shall comply with all the provisions of the lease. If Borrower acquires fee title to the Property, the leasehold and the fee title shall not merge unless Lender agrees to the merger in writing.

10. Mortgage Insurance. If Lender required Mortgage Insurance as a condition of making the Loan, Borrower shall pay the premiums required to maintain the Mortgage Insurance in effect. If, for any reason, the Mortgage Insurance coverage required by Lender ceases to be available from the mortgage insurer that previously provided such insurance and Borrower was required to make separately designated payments toward the premiums for Mortgage Insurance, Borrower shall pay the premiums required to obtain coverage substantially equivalent to the Mortgage Insurance previously in effect, at a cost substantially equivalent to the cost to Borrower of the Mortgage Insurance previously in effect, from an alternate mortgage insurer selected by Lender. If substantially equivalent Mortgage Insurance coverage is not available, Borrower shall continue to pay to Lender the amount of the separately designated payments that were due when the insurance coverage ceased to be in effect. Lender will accept, use and retain these payments as a non-refundable loss reserve in lieu of Mortgage Insurance. Such loss reserve shall be non-refundable, notwithstanding the fact that the Loan is ultimately paid in full, and Lender shall not be required to pay Borrower any interest or earnings on such loss reserve. Lender can no longer require loss reserve payments if Mortgage Insurance coverage (in the amount and for the period that Lender requires) provided by an insurer selected by Lender again becomes available, is obtained, and Lender requires separately designated payments toward the premiums for Mortgage Insurance. If Lender required Mortgage Insurance as a condition of making the Loan and Borrower was

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required to make separately designated payments toward the premiums for Mortgage Insurance, Borrower shall pay the premiums required to maintain Mortgage Insurance in effect, or to provide a non-refundable loss reserve, until Lender's requirement for Mortgage Insurance ends in accordance with any written agreement between Borrower and Lender providing for such termination or until termination is required by Applicable Law. Nothing in this Section 10 affects Borrower's obligation to pay interest at the rate provided in the Note.

Mortgage Insurance reimburses Lender (or any entity that purchases the Note) for certain losses it may incur if Borrower does not repay the Loan as agreed. Borrower is not a party to the Mortgage Insurance.

Mortgage insurers evaluate their total risk on all such insurance in force from time to time, and may enter into agreements with other parties that share or modify their risk, or reduce losses. These agreements are on terms and conditions that are satisfactory to the mortgage insurer and the other party (or parties) to these agreements. These agreements may require the mortgage insurer to make payments using any source of funds that the mortgage insurer may have available (which may include funds obtained from Mortgage Insurance premiums).

As a result of these agreements, Lender, any purchaser of the Note, another insurer, any reinsurer, any other entity, or any affiliate of any of the foregoing, may receive (directly or indirectly) amounts that derive from (or might be characterized as) a portion of Borrower's payments for Mortgage Insurance, in exchange for sharing or modifying the mortgage insurer's risk, or reducing losses. If such agreement provides that an affiliate of Lender takes a share of the insurer's risk in exchange for a share of the premiums paid to the insurer, the arrangement is often termed "captive reinsurance." Further:

(a) Any such agreements will not affect the amounts that Borrower has agreed to pay for Mortgage Insurance, or any other terms of the Loan. Such agreements will not increase the amount Borrower will owe for Mortgage Insurance, and they will not entitle Borrower to any refund.

(b) Any such agreements will not affect the rights Borrower has - if any - with respect to the Mortgage Insurance under the Homeowners Protection Act of 1998 or any other law. These rights may include the right to receive certain disclosures, to request and obtain cancellation of the Mortgage Insurance, to have the Mortgage Insurance terminated automatically, and/or to receive a refund of any Mortgage Insurance premiums that were unearned at the time of such cancellation or termination.

11. Assignment of Miscellaneous Proceeds; Forfeiture. All Miscellaneous Proceeds are hereby assigned to and shall be paid to Lender.

If the Property is damaged, such Miscellaneous Proceeds shall be applied to restoration or repair of the Property, if the restoration or repair is economically feasible and Lender's security is not lessened. During such repair and restoration period, Lender shall have the right to hold such Miscellaneous Proceeds until Lender has had an opportunity to inspect such Property to ensure the work has been completed to Lender's satisfaction, provided that such inspection shall be undertaken promptly. Lender may pay for the repairs and restoration in a single disbursement or in a series of progress payments as the work is completed. Unless an agreement is made in writing or Applicable Law requires interest to be paid on such Miscellaneous Proceeds, Lender shall not be required to pay Borrower any interest or earnings on such Miscellaneous Proceeds. If the restoration or repair is not economically feasible or Lender's security would be lessened, the Miscellaneous Proceeds shall be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower. Such Miscellaneous Proceeds shall be applied in the order provided for in Section 2.

In the event of a total taking, destruction, or loss in value of the Property, the Miscellaneous Proceeds shall be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower.

In the event of a partial taking, destruction, or loss in value of the Property in which the fair market value of the Property immediately before the partial taking, destruction, or loss in value is equal to or greater than the amount of the sums secured by this Security Instrument immediately before the partial taking, destruction, or loss in value, unless Borrower and Lender otherwise agree in writing, the sums secured by this Security Instrument shall be reduced by the amount of the Miscellaneous Proceeds multiplied by the following fraction: (a) the total amount of the sums secured immediately before the partial taking, destruction, or loss in value divided by (b) the fair market value of the Property immediately before the partial taking, destruction, or loss in value. Any balance shall be paid to Borrower.

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In the event of a partial taking, destruction, or loss in value of the Property in which the fair market value of the Property immediately before the partial taking, destruction, or loss in value is less than the amount of the sums secured immediately before the partial taking, destruction, or loss in value, unless Borrower and Lender otherwise agree in writing, the Miscellaneous Proceeds shall be applied to the sums secured by this Security Instrument whether or not the sums are then due.

If the Property is abandoned by Borrower, or if, after notice by Lender to Borrower that the Opposing Party (as defined in the next sentence) offers to make an award to settle a claim for damages, Borrower fails to respond to Lender within 30 days after the date the notice is given, Lender is authorized to collect and apply the Miscellaneous Proceeds either to restoration or repair of the Property or to the sums secured by this Security Instrument, whether or not then due. "Opposing Party" means the third party that owes Borrower Miscellaneous Proceeds or the party against whom Borrower has a right of action in regard to Miscellaneous Proceeds.

Borrower shall be in default if any action or proceeding, whether civil or criminal, is begun that, in Lender's judgment, could result in forfeiture of the Property or other material impairment of Lender's interest in the Property or rights under this Security Instrument. Borrower can cure such a default and, if acceleration has occurred, reinstate as provided in Section 19, by causing the action or proceeding to be dismissed with a ruling that, in Lender's judgment, precludes forfeiture of the Property or other material impairment of Lender's interest in the Property or rights under this Security Instrument. The proceeds of any award or claim for damages that are attributable to the impairment of Lender's interest in the Property are hereby assigned and shall be paid to Lender.

All Miscellaneous Proceeds that are not applied to restoration or repair of the Property shall be applied in the order provided for in Section 2.

12. Borrower Not Released; Forbearance By Lender Not a Waiver. Extension of the time for payment or modification of amortization of the sums secured by this Security Instrument granted by Lender to Borrower or any Successor in Interest of Borrower shall not operate to release the liability of Borrower or any Successors in Interest of Borrower. Lender shall not be required to commence proceedings against any Successor in Interest of Borrower or to refuse to extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument by reason of any demand made by the original Borrower or any Successors in Interest of Borrower. Any forbearance by Lender in exercising any right or remedy including, without limitation, Lender's acceptance of payments from third persons, entities or Successors in Interest of Borrower or in amounts less than the amount then due, shall not be a waiver of or preclude the exercise of any right or remedy.

13. Joint and Several Liability; Co-signers; Successors and Assigns Bound. Borrower covenants and agrees that Borrower's obligations and liability shall be joint and several. However, any Borrower who co-signs this Security Instrument but does not execute the Note (a "co-signer"): (a) is co-signing this Security Instrument only to mortgage, grant and convey the co-signer's interest in the Property under the terms of this Security Instrument; (b) is not personally obligated to pay the sums secured by this Security Instrument; and (c) agrees that Lender and any other Borrower can agree to extend, modify, forbear or make any accommodations with regard to the terms of this Security Instrument or the Note without the co-signer's consent.

Subject to the provisions of Section 18, any Successor in Interest of Borrower who assumes Borrower's obligations under this Security Instrument in writing, and is approved by Lender, shall obtain all of Borrower's rights and benefits under this Security Instrument. Borrower shall not be released from Borrower's obligations and liability under this Security Instrument unless Lender agrees to such release in writing. The covenants and agreements of this Security Instrument shall bind (except as provided in Section 20) and benefit the successors and assigns of Lender.

14. Loan Charges. Lender may charge Borrower fees for services performed in connection with Borrower's default, for the purpose of protecting Lender's interest in the Property and rights under this Security Instrument, including, but not limited to, attorneys' fees, property inspection and valuation fees. In regard to any other fees, the absence of express authority in this Security Instrument to charge a specific fee to Borrower shall not be construed as a prohibition on the charging of such fee. Lender may not charge fees that are expressly prohibited by this Security Instrument or by Applicable Law.

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If the Loan is subject to a law which sets maximum loan charges, and that law is finally interpreted so that the interest or other loan charges collected or to be collected in connection with the Loan exceed the permitted limits, then: (a) any such loan charge shall be reduced by the amount necessary to reduce the charge to the permitted limit; and (b) any sums already collected from Borrower which exceeded permitted limits will be refunded to Borrower. Lender may choose to make this refund by reducing the principal owed under the Note or by making a direct payment to Borrower. If a refund reduces principal, the reduction will be treated as a partial prepayment without any prepayment charge (whether or not a prepayment charge is provided for under the Note). Borrower's acceptance of any such refund made by direct payment to Borrower will constitute a waiver of any right of action Borrower might have arising out of such overcharge.

15. Notices. All notices given by Borrower or Lender in connection with this Security Instrument must be in writing. Any notice to Borrower in connection with this Security Instrument shall be deemed to have been given to Borrower when mailed by first class mail or when actually delivered to Borrower's notice address if sent by other means. Notice to any one Borrower shall constitute notice to all Borrowers unless Applicable Law expressly requires otherwise. The notice address shall be the Property Address unless Borrower has designated a substitute notice address by notice to Lender. Borrower shall promptly notify Lender of Borrower's change of address. If Lender specifies a procedure for reporting Borrower's change of address, then Borrower shall only report a change of address through that specified procedure. There may be only one designated notice address under this Security Instrument at any one time. Any notice to Lender shall be given by delivering it or by mailing it by first class mail to Lender's address stated herein unless Lender has designated another address by notice to Borrower. Any notice in connection with this Security Instrument shall not be deemed to have been given to Lender until actually received by Lender. If any notice required by this Security Instrument is also required under Applicable Law, the Applicable Law requirement will satisfy the corresponding requirement under this Security Instrument.

16. Governing Law; Severability; Rules of Construction. This Security Instrument shall be governed by federal law and the law of the jurisdiction in which the Property is located. All rights and obligations contained in this Security Instrument are subject to any requirements and limitations of Applicable Law. Applicable Law might explicitly or implicitly allow the parties to agree by contract or it might be silent, but such silence shall not be construed as a prohibition against agreement by contract. In the event that any provision or clause of this Security Instrument or the Note conflicts with Applicable Law, such conflict shall not affect other provisions of this Security Instrument or the Note which can be given effect without the conflicting provision.

As used in this Security Instrument: (a) words of the masculine gender shall mean and include corresponding neuter words or words of the feminine gender; (b) words in the singular shall mean and include the plural and vice versa; and (c) the word "may" gives sole discretion without any obligation to take any action.

17. Borrower's Copy. Borrower shall be given one copy of the Note and of this Security Instrument.

18. Transfer of the Property or a Beneficial Interest in Borrower. As used in this Section 18, "Interest in the Property" means any legal or beneficial interest in the Property, including, but not limited to, those beneficial interests transferred in a bond for deed, contract for deed, installment sales contract or escrow agreement, the intent of which is the transfer of title by Borrower at a future date to a purchaser.

If all or any part of the Property or any Interest in the Property is sold or transferred (or if Borrower is not a natural person and a beneficial interest in Borrower is sold or transferred) without Lender's prior written consent, Lender may require immediate payment in full of all sums secured by this Security Instrument. However, this option shall not be exercised by Lender if such exercise is prohibited by Applicable Law.

If Lender exercises this option, Lender shall give Borrower notice of acceleration. The notice shall provide a period of not less than 30 days from the date the notice is given in accordance with Section 15 within which Borrower must pay all sums secured by this Security Instrument. If Borrower fails to pay these sums prior to the expiration of this period, Lender may invoke any remedies permitted by this Security Instrument without further notice or demand on Borrower.

19. Borrower's Right to Reinstate After Acceleration. If Borrower meets certain conditions, Borrower shall have the right to have enforcement of this Security Instrument discontinued at any time prior to the earliest of: (a) five days before sale of the Property pursuant to any power of sale contained in this

050154 MAY 1 '05

Security Instrument; (b) such other period as Applicable Law might specify for the termination of Borrower's right to reinstate; or (c) entry of a judgment enforcing this Security Instrument. Those conditions are that Borrower: (a) pays Lender all sums which then would be due under this Security Instrument and the Note as if no acceleration had occurred; (b) cures any default of any other covenants or agreements; (c) pays all expenses incurred in enforcing this Security Instrument, including, but not limited to, reasonable attorneys' fees, property inspection and valuation fees, and other fees incurred for the purpose of protecting Lender's interest in the Property and rights under this Security Instrument; and (d) takes such action as Lender may reasonably require to assure that Lender's interest in the Property and rights under this Security Instrument, and Borrower's obligation to pay the sums secured by this Security Instrument, shall continue unchanged. Lender may require that Borrower pay such reinstatement sums and expenses in one or more of the following forms, as selected by Lender: (a) cash; (b) money order; (c) certified check, bank check, treasurer's check or cashier's check, provided any such check is drawn upon an institution whose deposits are insured by a federal agency, instrumentality or entity; or (d) Electronic Funds Transfer. Upon reinstatement by Borrower, this Security Instrument and obligations secured hereby shall remain fully effective as if no acceleration had occurred. However, this right to reinstate shall not apply in the case of acceleration under Section 18.

20. Sale of Note; Change of Loan Servicer; Notice of Grievance. The Note or a partial interest in the Note (together with this Security Instrument) can be sold one or more times without prior notice to Borrower. A sale might result in a change in the entity (known as the "Loan Servicer") that collects Periodic Payments due under the Note and this Security Instrument and performs other mortgage loan servicing obligations under the Note, this Security Instrument, and Applicable Law. There also might be one or more changes of the Loan Servicer unrelated to a sale of the Note. If there is a change of the Loan Servicer, Borrower will be given written notice of the change which will state the name and address of the new Loan Servicer, the address to which payments should be made and any other information RESPA requires in connection with a notice of transfer of servicing. If the Note is sold and thereafter the Loan is serviced by a Loan Servicer other than the purchaser of the Note, the mortgage loan servicing obligations to Borrower will remain with the Loan Servicer or be transferred to a successor Loan Servicer and are not assumed by the Note purchaser unless otherwise provided by the Note purchaser.

Neither Borrower nor Lender may commence, join, or be joined to any judicial action (as either an individual litigant or the member of a class) that arises from the other party's actions pursuant to this Security Instrument or that alleges that the other party has breached any provision of, or any duty owed by reason of, this Security Instrument, until such Borrower or Lender has notified the other party (with such notice given in compliance with the requirements of Section 15) of such alleged breach and afforded the other party hereto a reasonable period after the giving of such notice to take corrective action. If Applicable Law provides a time period which must elapse before certain action can be taken, that time period will be deemed to be reasonable for purposes of this paragraph. The notice of acceleration and opportunity to cure given to Borrower pursuant to Section 22 and the notice of acceleration given to Borrower pursuant to Section 18 shall be deemed to satisfy the notice and opportunity to take corrective action provisions of this Section 20.

21. Hazardous Substances. As used in this Section 21: (a) "Hazardous Substances" are those substances defined as toxic or hazardous substances, pollutants, or wastes by Environmental Law and the following substances: gasoline, kerosene, other flammable or toxic petroleum products, toxic pesticides and herbicides, volatile solvents, materials containing asbestos or formaldehyde, and radioactive materials; (b) "Environmental Law" means federal laws and laws of the jurisdiction where the Property is located that relate to health, safety or environmental protection; (c) "Environmental Cleanup" includes any response action, remedial action, or removal action, as defined in Environmental Law and (d) an "Environmental Condition" means a condition that can cause, contribute to, or otherwise trigger an Environmental Cleanup.

Borrower shall not cause or permit the presence, use, disposal, storage, or release of any Hazardous Substances, or threaten to release any Hazardous Substances, on or in the Property. Borrower shall not do, nor allow anyone else to do, anything affecting the Property (a) that is in violation of any Environmental Law, (b) which creates an Environmental Condition, or (c) which, due to the presence, use, or release of a Hazardous Substance, creates a condition that adversely affects the value of the Property. The preceding two sentences shall not apply to the presence, use, or storage on the Property of small quantities of Hazardous Substances that are generally recognized to be appropriate to normal residential uses and to maintenance of the Property (including, but not limited to, hazardous substances in consumer products).

050155 MAY 1 '06

Borrower shall promptly give Lender written notice of (a) any investigation, claim, demand, lawsuit or other action by any governmental or regulatory agency or private party involving the Property and any Hazardous Substance or Environmental Law of which Borrower has actual knowledge, (b) any Environmental Condition, including but not limited to, any spilling, leaking, discharge, release or threat of release of any Hazardous Substance, and (c) any condition caused by the presence, use or release of a Hazardous Substance which adversely affects the value of the Property. If Borrower learns, or is notified by any governmental or regulatory authority, or any private party, that any removal or other remediation of any Hazardous Substance affecting the Property is necessary, Borrower shall promptly take all necessary remedial actions in accordance with Environmental Law. Nothing herein shall create any obligation on Lender for an Environmental Cleanup.

NON-UNIFORM COVENANTS. Borrower and Lender further covenant and agree as follows:

22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument (but not prior to acceleration under Section 18 unless Applicable Law provides otherwise). The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the power of sale and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the power of sale, Lender or Trustee shall give to Borrower, the owner of the Property, and all other persons, notice of sale as required by Applicable Law. Trustee shall give public notice of sale by advertising, in accordance with Applicable Law, once a week for two successive weeks in a newspaper having general circulation in the county or city in which any part of the Property is located, and by such additional or any different form of advertisement the Trustee deems advisable. Trustee may sell the Property on the eighth day after the first advertisement or any day thereafter, but not later than 30 days following the last advertisement. Trustee, without demand on Borrower, shall sell the Property at public auction to the highest bidder at the time and place and under the terms designated in the notice of sale in one or more parcels and in any order Trustee determines. Trustee may postpone sale of all or any parcel of the Property by advertising in accordance with Applicable Law. Lender or its designee may purchase the Property at any sale.

Trustee shall deliver to the purchaser Trustee's deed conveying the Property with special warranty of title. The recitals in the Trustee's deed shall be prima facie evidence of the truth of the statements made therein. Trustee shall apply the proceeds of the sale in the following order: (a) to discharge the expenses of executing the trust, including a reasonable commission to Trustee; (b) to discharge all taxes, levies, and assessment, with costs and interest if these costs have priority over the lien of this Security Instrument, including the due pro rata thereof for the current year; (c) to discharge in the order of their priority, if any, the remaining debts and obligations secured by this Security Instrument, and any liens of record inferior to this Security Instrument under which sale is made, with lawful interest; and, (d) the residue of the proceeds shall be paid to Borrower or Borrower's assigns. Trustee shall not be required to take possession of the Property prior to the sale thereof or to deliver possession of the Property to the purchaser at the sale.

23. Release. Upon payment of all sums secured by this Security Instrument, Lender shall request Trustee to release this Security Instrument and shall surrender all notes evidencing debt secured by this Security Instrument to Trustee. Trustee shall release this Security Instrument. Borrower shall pay any recordation costs. Lender may charge Borrower a fee for releasing this Security Instrument, but only if the fee is paid to a third party for services rendered and the charging of the fee is permitted under Applicable Law.

24. Substitute Trustee. Lender, at its option, may from time to time remove Trustee and appoint a successor trustee to any Trustee appointed hereunder. Without conveyance of the Property, the successor trustee shall succeed to all the title, power and duties conferred upon Trustee herein and by Applicable Law.

NOTICE: THE DEBT SECURED HEREBY IS SUBJECT TO CALL IN FULL OR THE TERMS THEREOF BEING MODIFIED IN THE EVENT OF SALE OR CONVEYANCE OF THE PROPERTY CONVEYED.

BY SIGNING BELOW, Borrower accepts and agrees to the terms and covenants contained in this Security Instrument and in any Rider executed by Borrower and recorded with it.

Witnesses:

_____ Carolyn Faulkner Wyatt (Seal) -Borrower
Carolyn Faulkner Wyatt

_____ _____ (Seal) -Borrower

_____ (Seal) -Borrower _____ (Seal) -Borrower

_____ (Seal) -Borrower _____ (Seal) -Borrower

_____ (Seal) -Borrower _____ (Seal) -Borrower

DOC #:524884 APPL #:7000613007 LOAN #:6921668129

050157 MAY 1 '06

STATE OF VIRGINIA, Wythe **County, ss:**

The foregoing instrument was acknowledged before me this 24 day of April, 2006 by Carolyn Faulkner Wyatt

My Commission Expires: 3/31/07

Brooke Delp
Notary Public

I was commissioned as Brooke Wisman

DOC #:524885 APPL #:7000613007 LOAN #:6921668129

050153 MAY 1'06

Carolyn Wyatt
Deed of Trust

Schedule A

ALL that certain tract or parcel of real estate, with the improvements thereon and the privileges and appurtenances thereto belonging situate in the Town of Wytheville, Wythe County, Virginia, more particularly bounded and described as follows, to-wit:

"BEGINNING at a point in the center line of Highway No. 11, opposite the corner of Terry Brothers, and running thence with the center line of said highway, S 75 deg 10' W 100 feet to a stake; thence, N 16 deg 15' W 300 feet to a stake; thence N. 75 deg 10' E 100 feet to a stake in Terry Brothers' line; thence, running with their line, S 16 deg 15 E 300 feet to the beginning, containing 0.68 acres, more or less, less that portion conveyed to the Commonwealth of Virginia by deed dated July 20, 1953, and of record in Deed Book 142, page 227."

BEING the same property conveyed from Jim J. Grubbs and Vonda L. Grubbs, husband and wife, to Carolyn Faulkner Wyatt by deed dated April 12, 2001, of record in the Wythe County Clerk's Office as Instrument #010001388.

INSTRUMENT #060001758
RECORDED IN THE CLERK'S OFFICE OF
WYTHE ON
APRIL 28, 2006 AT 11:24AM
HAYDEN H. HORNEY, CLERK
RECORDED BY: SAD

VIRGINIA: IN THE CIRCUIT COURT OF WYTHE COUNTY

COURT FILE NO.
#1

190000214

IN RE: Carolyn Faulkner Wyatt , Deceased

QUALIFICATION OF ADMINISTRATOR

It appearing that Carolyn Faulkner Wyatt, resided at 980 West Lee Highway Wytheville VA 24382 US, in Wythe County, Virginia, within the jurisdiction of this Court, and died intestate on October 24, 2019, on motion of Kristal Joy Tolbert, it is ORDERED that Kristal Joy Tolbert is hereby appointed Administrator of the estate of Carolyn Faulkner Wyatt, deceased.

Kristal Joy Tolbert then appeared, made oath as the law directs, and acknowledged a bond as Administrator in the penalty of $7,000.00, without surety. The bond, being payable and conditioned according to law, is ORDERED to be recorded.

Kristal Joy Tolbert then appeared, made oath as the law directs, and in accordance with Section 64.2-1302 of the Code of Virginia, Inventory and Settlement is hereby waived.

Certificate is GRANTED Kristal Joy Tolbert for obtaining letters of administration upon the personal estate of Carolyn Faulkner Wyatt, in due form.

The statement of responsibilities required by Section 64.2-507, Code of Virginia, and the written notice of probate and the affidavit referred to in Section 64.2-508, Code of Virginia, were given to the Administrator.

Jeremiah Musser, Clerk
November 20, 2019

LIST OF HEIRS
COMMONWEALTH OF VIRGINIA VA. CODE § 64.2-509

Court File No.: 190000214
#2

Wythe County Circuit Court

Carolyn Faulkner Wyatt
NAME OF DECEDENT

October 24, 2019
DATE OF DEATH

I/We, the undersigned, hereby state under oath that the following are all of the heirs of the Decedent:

NAMES OF HEIRS	ADDRESSES	RELATIONSHIP	AGE
Kristal Joy Tolbert	36 Jeb Stuart Dr Bland,VA 24315 US	Daughter	43

[ ] This LIST OF HEIRS is filed in addition to the LIST OF HEIRS previously filed with this Court on .....
DATE

I/we am/are (please check one):

☐ Proponent(s) of the will (no qualification)

☒ Personal representative(s) of the decedent's estate

☐ Heir-at-law of intestate decedent (no qualification within 30 days following death)

Given under my/our hand this **twentieth** day of **November, 2019**
DATE

Kristal Joy Tolbert
PRINTED NAME OF SUBSCRIBER

Kristi J. Tolbert
SIGNATURE OF SUBSCRIBER

PRINTED NAME OF SUBSCRIBER

SIGNATURE OF SUBSCRIBER

PRINTED NAME OF SUBSCRIBER

SIGNATURE OF SUBSCRIBER

State of Virginia City/County of **Wythe County,** to-wit:

Subscribed and sworn to before me this **twentieth** day of **November, 2019** by **Kristal Joy Tolbert**

Jeremiah Musser
[✓] CLERK [ ] DEPUTY CLERK [ ] NOTARY PUBLIC

My commission expires .....

Registration No. .....

VIRGINIA: In the Clerk's Office of the **Wythe County** Circuit Court this **twentieth** day of **November, 2019** the foregoing LIST OF HEIRS was filed and admitted to record.

Teste: JEREMIAH E MUSSER
CLERK

by: _____, Deputy Clerk

FORM CC-1611 MASTER 10/12

BK37 pg 242

FIDUCIARY'S BOND

Court File No.: 190000214 #3

KNOW ALL MEN BY THESE PRESENTS, that

KRISTAL JOY TOLBERT

the "OBLIGOR(S)", is(are) held and firmly bound to the **COMMONWEALTH OF VIRGINIA,** in the sum of Seven Thousand Dollars and 00 Cents, to the payment whereof I(we) bind myself(ourselves), our heirs, personal representatives, successors and assigns, jointly and severally, by these presents, hereby waiving the benefit of any homestead exemptions as to this obligation.

This debt is [X] UNSECURED [ ] SECURED BY :

[ ] CASH [ ] PROPERTY [ ] CORPORATE SURETY [ ] OTHER:

The Conditions of this BOND are:

KRISTAL JOY TOLBERT , the Obligor(s) was this day qualified as

[X] Administrator [ ] Administrator, c.t.a. [ ] Executor [ ] Curator [ ] Other:

of the Estate of **CAROLYN FAULKNER WYATT** , deceased,
this **twentieth** day of **November, 2019.**

The Obligor(s) shall faithfully perform all duties required by law of said fiduciary office. If these conditions are faithfully fulfilled, this obligation shall be void; otherwise it shall remain in full force and effect.

In witness whereof, the Undersigned have hereunto set their hands and seals, this **twentieth** day of **November, 2019.**

Kristi J Tolbert .....(SEAL) .....(SEAL)
Kristal Joy Tolbert ,

.....(SEAL) .....(SEAL)

.....(SEAL) .....(SEAL)

Before the Clerk of Wythe County Circuit Court on this **twentieth** day of **November, 2019.**

The foregoing BOND was subscribed, sworn to and acknowledged by:

Kristal Joy Tolbert

the obligor(s) therein, and ordered to be recorded as provided by law.

Teste: JEREMIAH E MUSSER
CLERK

by Jeremiah Musser , Deputy Clerk

AFFIDAVIT OF NOTICE REGARDING ESTATE OF: CAROLYN FAULKNER WYATT

(who died on October 24, 2019) Case No. 190000214

#4

I/we, the undersigned, state under oath/affirm the following:
(Check the applicable block)

1. [X] I/we am/are a personal representative of the estate of the deceased person named above.

   [ ] I/we am/are a proponent of the will of the deceased person named above.

   [ ] I/we am/are a person with an interest in the estate of the deceased person named above.

2. [X] No notice was required to be given to any person pursuant to Va. Code § 64.2-508.

   OR

   [ ] I/we mailed or delivered within 30 days of qualification (or probate) a copy of the notice required by Va. Code § 64.2-508 to the following persons shown below:

	NAME	ADDRESS WHERE MAILED OR DELIVERED	DATE MAILED OR DELIVERED
a.			
b.			
c.			
d.			
e.			

(Attach additional pages if more space is needed)

(Check if applicable)

3. [ ] After exercising reasonable diligence, I/we have been unable to determine the address of the following persons to whom such notice is required:

(Check if applicable)

4. [ ] After exercising reasonable diligence, I/we have been unable to identify the names and addresses of the persons described below (such as a child of the deceased person) who may be an heir or beneficiary:

11-20-19 — DATE

Kristi J Tolbert — SIGNATURE

DATE

SIGNATURE

Commonwealth/State of VA [ ] City [X] County of Wythe

Subscribed and sworn to/affirmed before me on this 20th day of November, 20 19

by Kristal Joy Tolbert
PRINT NAME(S) OF SIGNATORY

11-20-19 — DATE

Jeremiah Massey

[ ] CLERK [ ] DEPUTY CLERK [ ] NOTARY PUBLIC

Notary Registration No. _____ My commission expires _____

NOTICE: This affidavit must be recorded in the Clerk's office where the personal representative qualified or the will was probated.

VIRGINIA: In the Clerk's Office of the Wythe County Circuit Court

this ..... day of ....., 20 .....

The foregoing Affidavit of Notice was this day admitted to record.

Teste: _____, Clerk

by _____, Deputy Clerk

FORM CC-1617 MASTER 07/17

010001388

FIPS CODE 197
TAX MAP NO. 000004178

THIS DEED, made and entered into this 12th, day of April, 2001, by and between **JIM J. GRUBBS and VONDA L. GRUBBS, his wife**, hereinafter called Grantors, and **CAROLYN FAULKNER WYATT**, hereinafter called Grantee,

- W I T N E S S E T H -

That for and in consideration of the sum of Ten and No/100 Dollars, ($10.00), cash in hand paid and other good and valuable consideration, receipt of which is hereby acknowledged, Grantors do hereby GRANT, BARGAIN, SELL, and CONVEY, unto **CAROLYN FAULKNER WYATT**, Grantee, in fee simple, all that certain tract or parcel of real estate, with all the privileges and appurtenances thereto belonging, situated in the Town of Wytheville, Wythe County, Virginia, known as 980 West Lee Highway, and more particularly bounded and described as follows, to-wit:

"BEGINNING at a point in the center line of Highway No. 11, opposite the corner of Terry Brothers, and running thence with the center line of said highway, S 75 deg 10' W 100 feet to a stake; thence, N 16 deg 15' W 300 feet to a stake; thence, N 75 deg 10' E 100

E.G. SHAFFER
ATTORNEY AT LAW
440 W. FRANKLIN STREET
WYTHEVILLE, VA 24382

Examined 4-17 .2001
Carolyn F. Wyatt
980 W. Lee Hwy Wytheville, VA
Teste: Janet B. Dan Clerk
Return: New Century Title

010006 APR 18 '01

01007 APR 18 '01

feet to a stake in Terry Brothers' line; thence, running with their line, S 16 deg 15 E 300 feet to the beginning, containing 0.68 acres, more or less, less that portion conveyed to the Commonwealth of Virginia by deed dated July 20, 1953, and of record in Deed Book 142, page 227."

Being the same real estate conveyed from Ronald Cleon Bridges, et als, to Jim J. Grubbs, et ux, by Correction Deed dated November 6, 2000, and which said deed is of record in the Wythe County Clerk's Office as Instrument Number 000004178.

Further reference is made to a deed from Mark D. Cullop, et ux, to Jim J. Grubbs, et ux, dated October 20, 1997, and which said deed is of record in the Wythe County Clerk's Office as Instrument Number 970003953.

Reference is made to the foregoing deeds for a more complete description of the premises hereby conveyed

This conveyance is made subject to such conditions, reservations, restrictions, and easements of record to the extent that they may lawfully apply to the property conveyed.

All taxes for the year 2001 will be prorated between the parties hereto as of date of delivery of this deed.

Possession of this property is delivered upon delivery of this deed.

Grantors covenant that they will warrant generally the title to the property conveyed; that they have the right to convey the same in fee simple; that they have done no act to encumber the same; that they will execute such further assurances of title as may be requisite, and that the grantee shall have the quiet possession thereof.

E.G. SHAFFER
ATTORNEY AT LAW
440 W. FRANKLIN STREET
WYTHEVILLE, VA 24382

010008 APR 18 '01

WITNESS, the following signatures and seals:

_____(SEAL)
JIM J. GRUBBS

_____(SEAL)
VONDA L. GRUBBS

COMMONWEALTH OF VIRGINIA AT LARGE

COUNTY OF WASHINGTON, TO-WIT:

I, PATRICIA P. SPRAKER, a Notary Public in and for the Commonwealth of Virginia At Large, in the County aforesaid, do hereby certify that **JIM J. GRUBBS and VONDA L. GRUBBS, his wife**, whose names are signed to the foregoing deed bearing date of April 12, 2001, have personally appeared before me and acknowledged the same.

Given under my hand this 16th day of April, 2001.

My commission expires: 7-31-2003

_____
NOTARY PUBLIC

INSTRUMENT #010001388
RECORDED IN THE CLERK'S OFFICE OF
WYTHE ON
APRIL 17, 2001 AT 11:12AM
$49.00 GRANTOR TAX WAS PAID AS
REQUIRED BY SEC 58.1-802 OF THE VA. CODE
STATE: $24.50 LOCAL: $24.50
HAYDEN H. HORNEY, CLERK
BY: _____ (DC)

E.G. SHAFFER
ATTORNEY AT LAW
440 W. FRANKLIN STREET
WYTHEVILLE, VA 24382

CLR240001154

This instrument prepared by:
Renasant Bank,
Marie Strickland
2001 Park Place North Ste 650, Birmingham, AL
35203, Phone 205-824-3850

After Recording Return To:

Renasant Bank - Post Closing - Final Docs
2001 Park Place North, Suite 150
Birmingham, AL 35203
Loan Number: 4324040305
Case Number: 544-3980040-703

Return to: NCT at 140 S. 4th St., Wytheville, VA 24382

Tax Map Reference No./PIN:

Amount of Consideration: 216,015.00

Property Value: $220,000.00

[Space Above This Line For Recording Data]

FHA Case No: 544-3980040-703

DEED OF TRUST

MIN: 100319243240403055 **MERS Phone: 888-679-6377**

The following information, as further defined below, is provided in accordance with Virginia law:

This Deed of Trust is given by Nadia Howard an unmarried woman, and Lynn K Howard an unmarried woman

,

as Borrower (trustor/grantor), to New Century Title & Settlement Agency Inc

,

as Trustee, for the benefit of Mortgage Electronic Registration Systems, Inc., as beneficiary (grantee).

DEFINITIONS

Words used in multiple sections of this document are defined below and other words are defined in Sections 3, 10, 12, 17, 19 and 20. Certain rules regarding the usage of words used in this document are also provided in Section 15.

(A) "Security Instrument" means this document, which is dated May 23, 2024 ,
together with all Riders to this document.
(B) "Borrower" is Nadia Howard an unmarried woman, and Lynn K Howard an unmarried woman

Borrower is the trustor under this Security Instrument.

Examined 5/23, 20 24
New Century Title
Tests Brenda Quarles Dep. Clerk

(C) **"Lender"** is Renasant Bank

Lender is a MISSISSIPPI CORPORATION organized and existing under the laws of MISSISSIPPI .
Lender's address is 2001 Park Place North, Suite 150, Birmingham, Alabama 35203 .

(D) **"Trustee"** is New Century Title & Settlement Agency Inc

Trustee (whether one or more persons) is a Virginia resident and/or a United States- or Virginia-chartered corporation whose principal office is located in Virginia. Trustee's address is 140 S 4th Street, Wytheville, Virginia 24382

(E) **"MERS"** is Mortgage Electronic Registration Systems, Inc. MERS is a separate corporation that is acting solely as a nominee for Lender and Lender's successors and assigns. **MERS is the beneficiary under this Security Instrument.** MERS is organized and existing under the laws of Delaware, and has an address and telephone number of P.O. Box 2026, Flint, MI 48501-2026, tel. (888) 679-MERS.
(F) **"Note"** means the promissory note signed by Borrower and dated May 23, 2024 .
The Note states that Borrower owes Lender TWO HUNDRED SIXTEEN THOUSAND FIFTEEN AND 00/100 Dollars (U.S. $ 216,015.00) plus interest. Borrower has promised to pay this debt in regular Periodic Payments and to pay the debt in full not later than June 1, 2054 .
(G) **"Property"** means the property that is described below under the heading "Transfer of Rights in the Property."
(H) **"Loan"** means the debt evidenced by the Note, plus interest, late charges due under the Note, and all sums due under this Security Instrument, plus interest.
(I) **"Riders"** means all Riders to this Security Instrument that are executed by Borrower. The following Riders are to be executed by Borrower [check box as applicable]:

☐ Adjustable Rate Rider ☐ Planned Unit Development Rider
☐ Condominium Rider ☐ Other(s) [specify]

(J) **"Applicable Law"** means all controlling applicable federal, state and local statutes, regulations, ordinances and administrative rules and orders (that have the effect of law) as well as all applicable final, non-appealable judicial opinions.
(K) **"Community Association Dues, Fees, and Assessments"** means all dues, fees, assessments and other charges that are imposed on Borrower or the Property by a condominium association, homeowners association or similar organization.
(L) **"Electronic Funds Transfer"** means any transfer of funds, other than a transaction originated by check, draft, or similar paper instrument, which is initiated through an electronic terminal, telephonic instrument, computer, or magnetic tape so as to order, instruct, or authorize a financial institution to debit or credit an account. Such term includes, but is not limited to, point-of-sale transfers, automated teller machine transactions, transfers initiated by telephone, wire transfers, and automated clearinghouse transfers.
(M) **"Escrow Items"** means those items that are described in Section 3.

(N) "Miscellaneous Proceeds" means any compensation, settlement, award of damages, or proceeds paid by any third party (other than insurance proceeds paid under the coverages described in Section 5) for: (i) damage to, or destruction of, the Property; (ii) condemnation or other taking of all or any part of the Property; (iii) conveyance in lieu of condemnation; or (iv) misrepresentations of, or omissions as to, the value and/or condition of the Property.
(O) "Mortgage Insurance" means insurance protecting Lender against the nonpayment of, or default on, the Loan.
(P) "Periodic Payment" means the regularly scheduled amount due for (i) principal and interest under the Note, plus (ii) any amounts under Section 3 of this Security Instrument.
(Q) "RESPA" means the Real Estate Settlement Procedures Act (12 U.S.C. §2601 et seq.) and its implementing regulation, Regulation X (12 C.F.R. Part 1024), as they might be amended from time to time, or any additional or successor legislation or regulation that governs the same subject matter. As used in this Security Instrument, "RESPA" refers to all requirements and restrictions that are imposed in regard to a "federally related mortgage loan" even if the Loan does not qualify as a "federally related mortgage loan" under RESPA.
(R) "Secretary" means the Secretary of the United States Department of Housing and Urban Development or his designee.
(S) "Successor in Interest of Borrower" means any party that has taken title to the Property, whether or not that party has assumed Borrower's obligations under the Note and/or this Security Instrument.

TRANSFER OF RIGHTS IN THE PROPERTY

The beneficiary of this Security Instrument is MERS (solely as nominee for Lender and Lender's successors and assigns) and the successors and assigns of MERS. This Security Instrument secures to Lender: (i) the repayment of the Loan, and all renewals, extensions and modifications of the Note; and (ii) the performance of Borrower's covenants and agreements under this Security Instrument and the Note. For this purpose, Borrower does hereby mortgage, grant and convey to Trustee, in trust, with power of sale, the following described property located in the

COUNTY of Wythe :
[Type of Recording Jurisdiction] [Name of Recording Jurisdiction]

SEE EXHIBIT "A" ATTACHED HERETO AND BY THIS REFERENCE MADE A PART HEREOF.

which currently has the address of 980 West Lee Highway
[Street]
Wytheville/Wythe , Virginia 24382 ("Property Address"):
[City/County] [Zip Code]

TOGETHER WITH all the improvements now or hereafter erected on the property, and all easements, appurtenances, and fixtures now or hereafter a part of the property. All replacements and additions shall also be covered by this Security Instrument. All of the foregoing is referred to in this Security Instrument as the "Property." Borrower understands and agrees that MERS holds only legal title to the interests granted by Borrower in this Security Instrument, but, if necessary to comply with law or custom, MERS (as nominee for Lender and Lender's

BY SIGNING BELOW, Borrower accepts and agrees to the terms and covenants contained in this Security Instrument and in any Rider executed by Borrower and recorded with it.

_____(Seal)
Nadia Howard -Borrower

_____(Seal)
Lynn K Howard -Borrower

_____
Witness

_____
Witness

[Space Below This Line For Acknowledgment]

State of Virginia

County of Wythe

The foregoing instrument was acknowledged before me this 23rd day of May 2024
(date)

by Nadia Howard AND Lynn K Howard

(name of person acknowledging)

KATLINN PAIGE FLETCHER
NOTARY PUBLIC
REG. #8025346
MY COMMISSION EXPIRES
02-29-2026
COMMONWEALTH OF VIRGINIA

(Notary's Seal)

Katlinn Paige Fletcher
Signature of Person Taking Acknowledgment

Notary
Title or Rank

8025346
Serial Number, if any

Loan Originator: Cynthia McHone, NMLSR ID 2338637
Loan Originator Organization: Bank of the James - TableFunded Plus (Brokered), NMLSR ID 410452
Loan Originator Organization: Renasant Bank, NMLSR ID 402669

Nadia Howard
Lynn Howard
Deed of Trust

Schedule A

All that certain tract or parcel of real estate, together with the improvements thereon and privileges thereto belonging, situate in the Town of Wytheville, Wythe County, Virginia, Virginia, more particularly bounded and described as follows, to-wit:

"Beginning at a point in the center line of Highway No. 11, opposite the corner of Terry Brothers, and running thence with the center line of said Highway, S 75° 10' W 100 feet to a stake; thence, N 16° 15' W 300 feet to a stake; thence N 75° 10' E 100 feet to a stake in Terry Brothers' line; thence, running with their line, S 16° 15' E 300 feet to the beginning, containing 0.68 acres, more or less, less that portion conveyed to the Commonwealth of Virginia by deed dated July 20, 1952, and of record in Deed Book 142, page 227."

Said plat recorded in Plat Book 2, page 10.

BEING the same property conveyed from 5S Property LLC to Nadia Howard and Lynn Howard, by deed dated May 23, 2024, to be recorded immediately prior to this Deed of Trust.

INSTRUMENT 240001154
RECORDED IN THE CLERK'S OFFICE OF
WYTHE CIRCUIT COURT ON
MAY 23, 2024 AT 01:30 PM
JEREMIAH E. MUSSER, CLERK
RECORDED BY: BGQ